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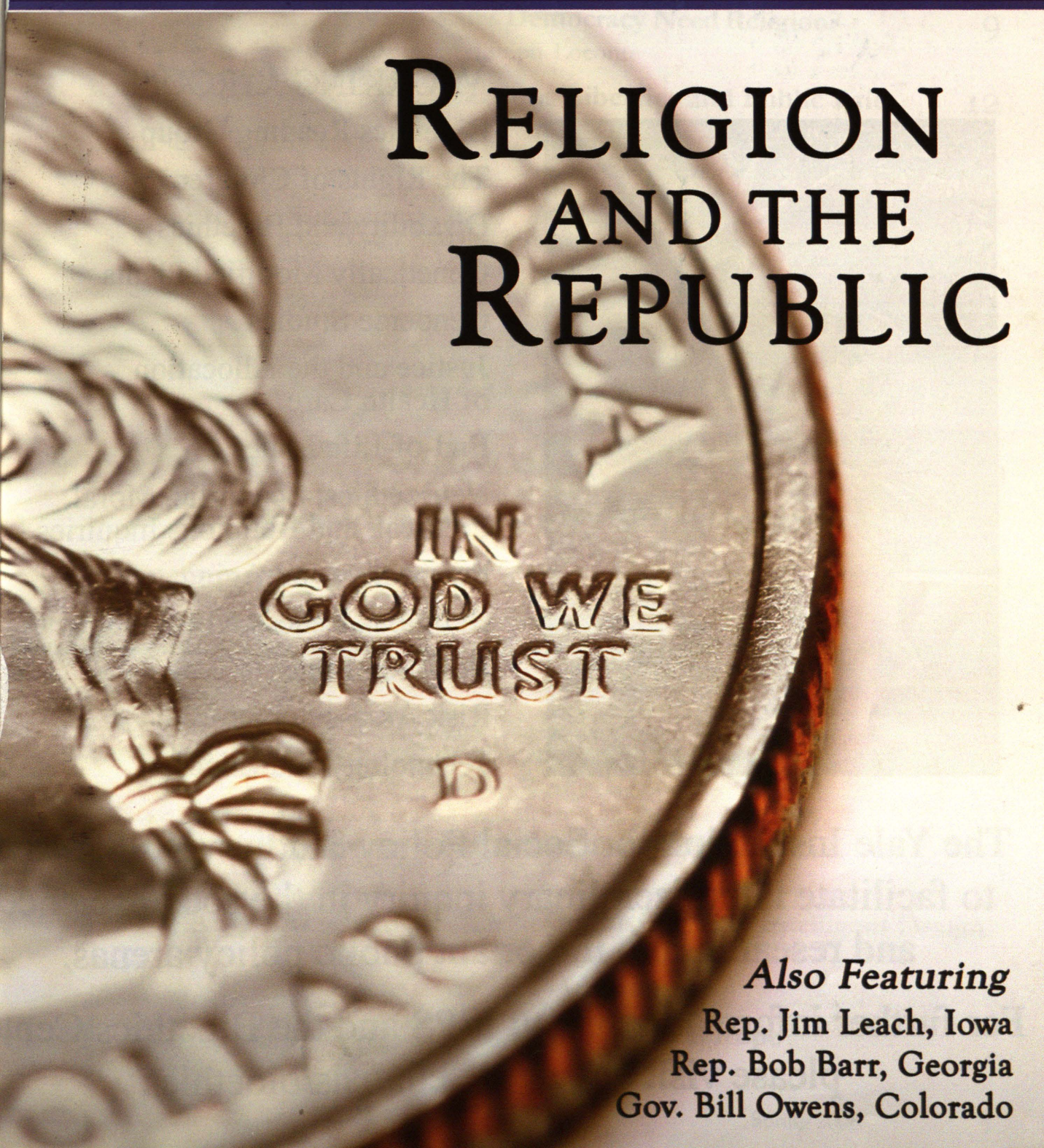
Spring 2006
Volume VII
Issue I

THE POLITIC

The Yale College Journal of Politics



RELIGION AND THE REPUBLIC

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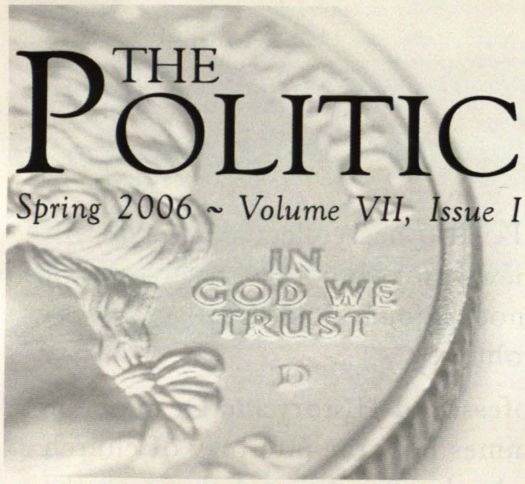

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FROM THE EDITOR
SPRING 2006

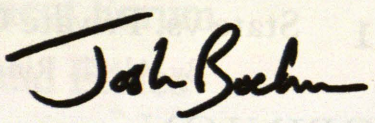
Dear Reader,

For this issue, THE POLITIC has collected a set of diverse, well-reasoned views on a topic that receives a lot of popular press but not enough intellectual scrutiny – religion in American politics.

Yale's Jon Butler, Professor of History and Dean of the Graduate School, examines how the interplay of church and state can produce absolutist politics, drawing on the lessons of America's leading religious philosophers. Joseph Loconte of the Heritage Foundation also uses a historical lens in his article, which probes the fundamental role of religion in the American experiment. And our two feature interviews – with ACLU fellow Jeremy Gunn and evangelical activist Rev. Jim Wallis – shed light on the intricacies of America's "moral value" debate.

Outside of our feature, THE POLITIC is proud to be the first media outlet to receive Colorado Governor Bill Owens' new proposal for immigration reform. U.S. Representatives Bob Barr and Jim Leach also headline this issue, detailing their respective views on privacy protection in the Information Age and the changing political and economic trends of East Asia.

Thanks again to our readers and sponsors for all your support. As always, we hope you enjoy this latest edition of THE POLITIC.



Josh Boehm
Editor-in-Chief

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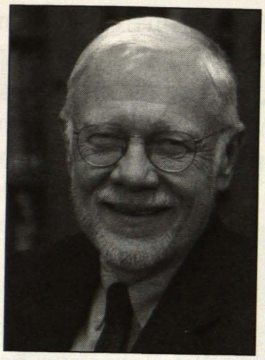


Religious Red Herrings

Morality, Politics, and the Human Responsibilty for God

By Jon Butler

In the 1950s, American social etiquette precluded two subjects at dinner parties: religion and politics. Since the 1990s, at least, Americans haven't been able to stop talking about religion and politics. Indeed, if something separates us from Europeans, it's that Americans plus Iraqis, Iranians, Egyptians—the list seems endless in the third world—seem fixated on religion and politics. We're lemmings headed for the religio-political cliffs, if not the apocalypse.

Unusual? Maybe yes. Maybe no. Depending on how we think about religion and politics, the linkage is scarcely new. It goes back to the Hebrew kings and prophets, Mayan monarchs, and Australian aborigines (as Emile Durkheim taught us), for whom belief in transcendent beings and forces (religion) seemed inextricably linked to the social order (politics), plus right and wrong, sex, revenge (if not by the gods, in the name of the gods)—indeed, about almost everything.

Why, then, does the phrase "religion and politics" now bear such a lurid, surprising quality despite its decade-long presence on the Fox Channel?

The answer rests with a triple fiction.

The first fiction—well, not fiction, but exaggeration—is that religion and politics became uncoupled through the eighteenth-century Enlightenment, the resulting rise of secularization, and the decline of religion as a force shaping politics and society. In fact, there never was a golden age when politics and religion flourished in harmonious unity, the reputation of the Middle Ages to the contrary. The separation is a commonplace of Christian scripture: "Render therefore unto Caesar the things which be Caesar's, and unto God the things which be God's" (Luke 20:25).

The second fiction is a variant of the first, namely that secularization stemmed from a cabal of humanists ranging from Voltaire and Thomas Jefferson to Marx to John Dewey and Franklin Roosevelt. Using the language of victimization, Pat Robertson, Anne Coulter, and Bill O'Reilly sniff out purveyors of secular humanism and "valueless" philosophy in almost every intellectual, and certainly every academic, they see.

The third fiction is that the revival of the union of religion and politics stems from the rise of the New Christian Right in the 1970s and 1980s and its successes in electing Ronald Reagan and the two Bushes, with an early push from civil rights leaders in the 1960s.

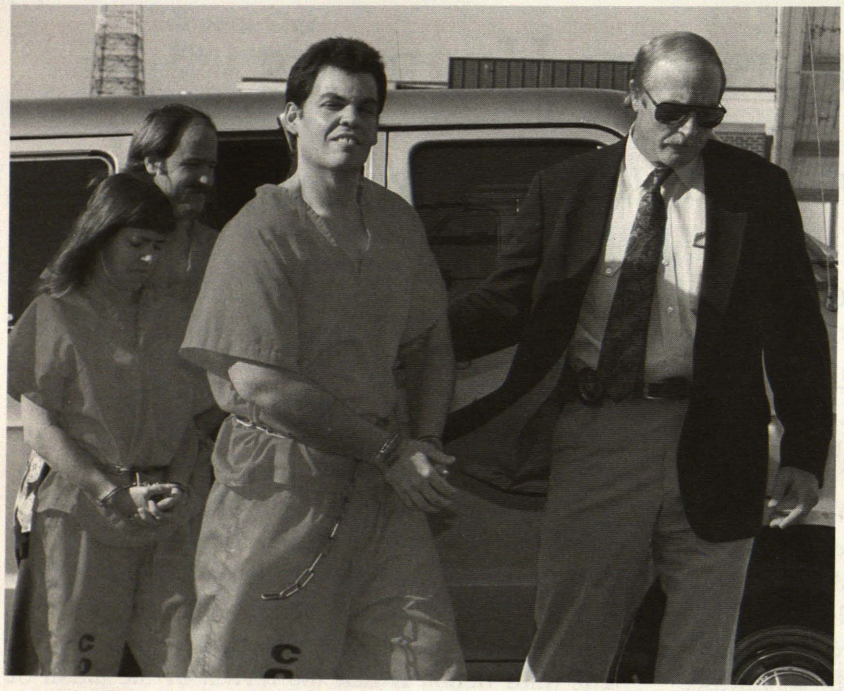
The partial truth of this fiction can be seen in the 1960s civil rights crusade. It was the first and most dramatic late twentieth-century U.S. political movement to advertise explicitly religious roots. Yet its own foundations stretched back into the late nineteenth century and complicate our view of the separation of religion from politics even in American history.

Secularism indeed crowded American politics between the Civil War and World War II. Yet religion scarcely disappeared in 1900 any more than it had disappeared in the age of the Enlightenment. The Protestant Social Gospel, shaped by clerical activists like Walter Rauschenbusch, not only provided the intellectual muscle for the Progressive Movement but created the broad form of social thinking on which Martin Luther King articulated the post-1950 civil rights crusade.

Roman Catholic social teaching, such as that espoused by Dorothy Day or John A. Ryan, stressed collective responsibility for individual and social failures alike and opposed the eugenic movement (which many Protestants imbibed) with principles that later buttressed the anti-abortion movement. Jewish social thinking, expressed not only in the writings of secular Jewish social thinkers but in theologians such as Abraham Joshua Heschel and the controversial Mordecai Kaplan, embraced a modern participatory politics as it also redefined Judaism, not only in America but in the world.

And, of course, there was Reinhold Niebuhr, almost a tradition or movement unto himself, most spectacularly in *Moral Man and Immoral Society* (1934) and a string of

Jonathan Butler *is the Dean of the Graduate School of Arts & Sciences and the Howard R. Lamar Professor of American Studies, History, and Religious Studies at Yale. He has written extensively on the subject of religion in America, and his many works include* The Origins of American Denominational Order *(1978),* Becoming America: The Revolution Before 1776 *(2000), and* Religion in American Life: A Short History *(co-author, 2002).*



***Transcendent Vision**: Members of the Branch Davidian movement are escorted into federal court in April 1993. David Koresh, leader of the group, believed that their confrontation with federal agents would cause the apocalypse. (Wilkins/Getty Images)*

Claiming to act in God's name or in the name of a transcendent ideology, typically accompanied by absolutist claims about right and wrong, is the oldest of all sins.

books stretching into the 1950s. Niebuhr created an anomaly—a socialist whose neoconservative Christianity stressed the continuing presence of evil in modern humanity and modern times.

What separates this longer twentieth-century tradition of linking religion and politics from some of its more recent expressions? The American political historian Arthur Schlesinger, Jr., provided an important clue in a *New York Times Book Review* essay last fall.

Writing on Niebuhr's "disappearance" in the revived discussion of religion and politics in America, Schlesinger astutely honed in on one of Niebuhr's central points: that the presence of evil in humanity—conceptualized in Christianity as original sin—precluded precisely the religious and political absolutes so beloved in the pre- and post-9/11 world.

Absolutes admit no error and produce horrendous distensions in the human psyche and the treatment of others. Christ's injunction in the Gospel of Luke—"And as ye would that men should do to you, do ye also to them likewise" (6:31)— simply says that we should see our neighbors, friends, and enemies as mirrors of our own flaws. We are them.

For centuries Christians assured believers that Jews killed Christ and practiced a politics that reflected this conviction. American Protestant fears about Catholics and Jews shaped Democratic and Republican politics in America, as well as neighborhood life (with its residential segregation of whites as well) down to the 1960s.

What can religion do to produce absolutist politics? Transcendent visions.

Too many practitioners of divine politics glory in the limitlessness and power of spiritual surety. Pat Robertson had little trouble casually suggesting that God hobbled Ariel Sharon for dividing Israel. Such claims have been commonplace on "The 700 Club." Only weeks before, Robertson had warned Dover, Pennsylvania, citizens, "If there is a disaster in your area, don't turn to God. You just rejected him from your city." Why? Because Dover's newly elected school board had just abandoned their "intelligent design" science curriculum.

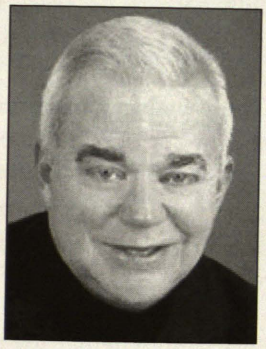
Similarly, Mohamed Atta led the attack on the World Trade Center in the name of an Islamic paradise entered through violence. David Koresh's Branch Davidians believed their confrontation with the U.S. Alcohol, Firearms, and Tobacco agency was the catalyst for the apocalypse.

But religion also can produce a different kind of politics when divorced from transcendent visions and their absolutist imperatives. Niebuhr believed that we could resist evil only by recognizing the imperfection, hubris, and lust for power and domination within us, and that the real politics stimulated by this recognition might actually make moral behavior and a worthy politics possible. Claiming to act in God's name or in the name of a transcendent ideology, typically accompanied by absolutist claims about right and wrong, is perhaps the oldest of all sins.

But especially in a modern world unexpectedly awash in messiahs and in messianic and transcendent movements that now so frequently join religion and politics, it seems ever more important to recognize an otherwise blasphemous truth: that responsibility for acting in the name of God still remains a profoundly human responsibility. The voice claiming to be God's is usually just our own.

Evangelism As It Should Be

An Interview with Rev. Jim Wallis



Rev. Jim Wallis is the founder and editor of *Sojourners* magazine, which covers faith, politics, and culture in contemporary America. Through his organization Call to Renewal, he has promoted the "Christian commitment to social service." He is the author of *God's Politics: Why the Right Gets it Wrong and the Left Doesn't Get It* and *The Soul of Politics: Beyond "Religious Right" and "Secular Left."* Rev. Wallis sat down with The Politic on January 1.

You're often deemed a "liberal evangelical," yet evangelicals are often confused with fundamentalists. What would you say is the difference between the two titles and at what point, if any, does evangelism become fundamentalism?

I'm a nineteenth century evangelical born in the wrong century. Back then evangelicals were evangelists and abolitionists who fought to overcome slavery. They were revivalists and reformers who fought for women's suffrage and for child labor law reform.

As my eighty-year-old dad still says, Jerry Falwell is not an evangelical; he is a fundamentalist. Fundamentalists have taken over the word evangelical and have tried to say that evangelicals are all right-wing politicians like Jerry Falwell, Pat Robertson, and James Dobson. And they're not. I go to Christian colleges all the time now—Wheaton and Seattle Pacific, for example—and the whole generation of under-thirty evangelicals that I meet on the road are much more concerned with global poverty, HIV/AIDS, the environment, and the war in Iraq than they are with gay marriage amendments. So the idea that evangelicals are all fundamentalists is wrong. There is a growing movement out there that younger evangelicals are hoping to shape and build, and they care about a broader range of issues. And so I am very hopeful about the evangelical name being restored and being good news again.

The word goes back to "evangel" meaning "good news" and the word comes up in Jesus' first sermon at Nazareth when he said: "The spirit of the Lord is upon me because he has appointed me to preach and bring evangel to the poor." So right here at the start, this gospel is connected to what happens to poor people.

In *God's Politics* you often refer to "secular fundamentalists" in a negative light. How would you characterize secular fundamentalism, and what threat does it pose to America's future?

The first thing I'd say is religion doesn't have a monopoly on morality. There are many people—dear friends of mine, allies, and partners—who are not religious. Some would say I'm spiritual and not religious. Others would say I'm pretty secular.

When I appeared on "The Daily Show," Jon Stewart and I had a great time bantering. After the show, he put his hand on my arm and said, "I'm pretty secular, but I like this a lot…maybe I could be involved somehow." So I have no objection to people who aren't Christian or religious.

But secular fundamentalism has a disdain for religion, for people of faith, even for spirituality. And I've run into that a lot. Kick religion out of the public square, banish any mention of faith, don't quote Jeremiah, Jesus, and Isaiah—keep them at home or in your church with the door shut. I think we need to get over our fear of language of values, language of spirituality in politics, even language of faith in politics. And that can be done in a way that is democratic, pluralistic, inclusive, and respectful of our diversity in this country.

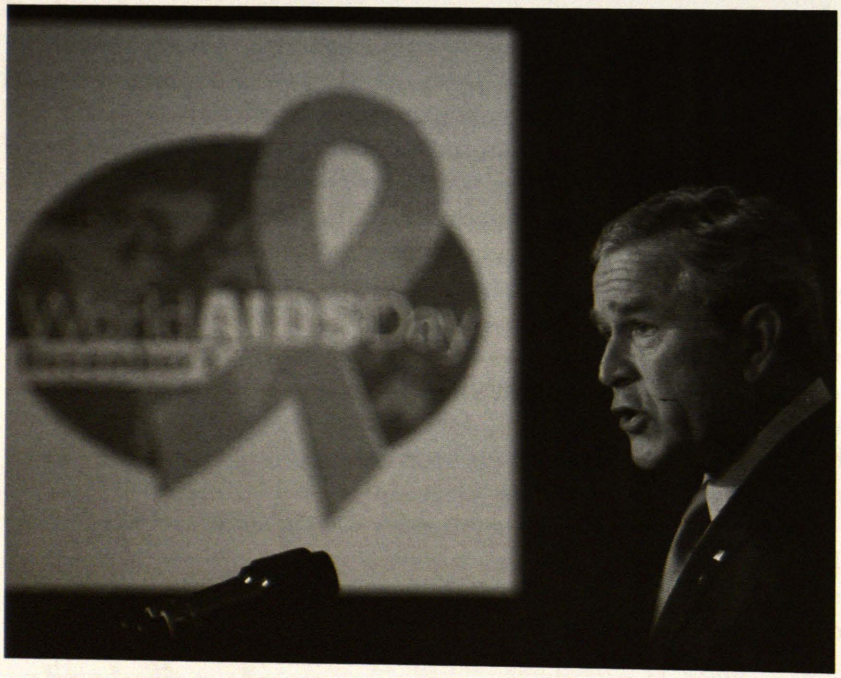
I believe in the separation of church and state. It doesn't mean the segregation of moral values from public life or the banishing of religious language from the public square. Where would we be if the Rev. Dr. Martin Luther King had kept his spirituality to himself? So let's not be afraid, especially on the progressive side, of remembering that we have a long tradition of progressive religion in this nation and that every major social movement we've had was fueled and driven, at least in part, by religion.

Moral values have, in many ways, been narrowly de-

fined by the media. You challenge Americans to see moral values in a broader light. Could you speak to your particular conception of "moral values"?

When I find more than two thousand verses in my Bible about poor people, I will insist that fighting poverty is a moral values issue, too.

There was a flawed exit poll in the last election that asked: What motivates you, issues or values? And the issues were things like the economy, foreign policy, war in Iraq, or moral values. Moral values won by a small plurality, twenty-some percent over the issues. And so, the perception—media-wise—was that those were the abortion and gay marriage voters, meaning that there are only two moral values: abortion and gay marriage. But the poll was flawed. If I were a Christian who thought the war in Iraq was wrong, I would have checked Iraq, which is a moral value for me but was listed aside from moral values in the poll. Or if I were running a Catholic soup kitchen I would have checked something about the economy—jobs or something poverty-related—which was not, in the poll, a moral value.



Not Enough? *President Bush delivers remarks on World AIDS Day, January 1, 2006. Rev. Wallis charges that despite his $15 billion AIDS initiative, Bush is not doing enough to combat global poverty. (Somodevilla/Getty Images)*

A new poll—conducted by Zogby—asked the same voters about a week later: What's the greatest moral crisis in America? Well, 64% said either greed and materialism or injustice and poverty. Only 16% said abortion and 11% said gay marriage. So when the question was asked directly it came out quite differently. There are certainly some evangelicals on the right who really say there are only two moral values issues. Some are chastising other evangelicals who are talking about poverty, global warming, the war, and the environment. Let's get off of these issues, they say, and get back to our real issues: abortion and gay marriage.

When I find more than two thousand verses in my Bible about poor people, I will insist that fighting poverty is a moral values issue, too. Protecting the environment, otherwise known as God's creation, is a moral values issues, too. The ethics of war—whether we go to war, when we go to war, and whether we tell the truth about going to war—is a religious and moral values issue, too. So let's have a broader conversation about moral values.

How has President Bush fared in combating domestic and global poverty?

Very poorly. Before he came to Washington, I met him to talk about poverty and faith-based initiatives. Twenty of us met with him in Austin and I was prepared to be supportive and hopeful. I was supportive of faith-based initiatives if they were a *partnership* with the government, not a substitute for government action. This president has formed a domestic policy bereft of any commitment to fight poverty. In fact, the only real domestic-policy priority that I can see is cutting taxes and paying for it by cutting services—vital ones—for poor families: food stamps, Medicaid, education. These are bad moral values, so I've been very disappointed with this president.

He announced some good initiatives overseas. Fifteen billion for HIV/AIDS in Africa, but it isn't being fully funded, and the U.S. still isn't matching the European commitment on global poverty reduction. The other European nations have moved up to 0.7% of their GNP and Bush is not doing that. He's falling short on promises and not even funding those goals he does have. I think he could have really made a mark as a Republican on the issue of pov-

erty and a lot of us were prepared to give him a chance to do that. I think he's fallen way short of those hopes and expectations.

You begin *God's Politics* with Proverbs 29:18: "Without a vision, the people perish." Your argument underscores the need for a spiritual revival in America that will "ignite a deep social conscience and transform our society." Which particular theology or faith will inspire such a transformation?

For 2005, the *Time* magazine Persons of the Year were Bono and Bill and Melinda Gates. If you read the article, you see Bono saying that we're not going to overcome poverty or HIV/AIDS pandemics in Africa without a movement—a real movement. The ones that have been most effective have had spiritual foundations and Bono understands that. So when you talk to Bono about this he gets it that celebrity won't help us reach a tipping point on poverty, but a movement could. So how do you build a movement?

I want the kind of faith and revival, if you will, that will spark a social movement. The church historians tell us that something isn't reliable until it's changed a society in some way. Spritual renewal by itself isn't reliable—it only affects individuals, makes them more whole, spiritual, helps to save their marriages, solves drinking problems like President Bush's faith has for him. It isn't a revival until it's changed a society in some way. I think we're looking now at a new altar-call, if you will, and it's going to be around poverty. Poverty is the new slavery. It enslaves hearts and minds and bodies. And the new altar-call is going to be: Make poverty history. And I think that's happening already around the country.

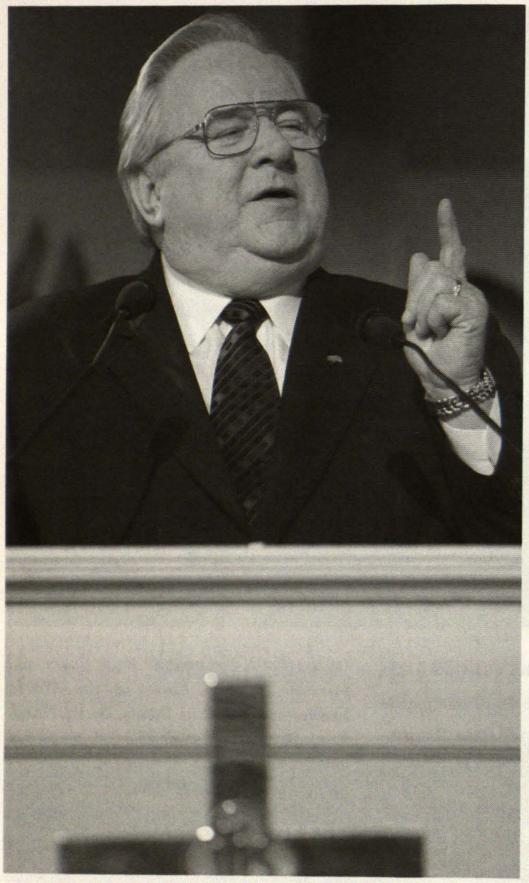
What dangers, if any, do you anticipate in a prophetic vision founded on Christian principles? In a spiritually diverse nation, how will you persuade all Americans that this *particular* theology is really for the common good?

I think there are at least two dangers. One is that the religious left will become as partisan as the religious right has become, and you just support left-wing or liberal candidates uncritically—you don't hold them accountable. The religious right is just an echo; they're a parody. Religion is a partisan wedge for them to win elections, to divide people. They don't hold their side accountable to their own values, so that's one danger. Religion is best when it is not ideologically predictable. I think we need to move beyond left and right, but not to a mushy-middle. I want to see a moral center, not a mushy centrism where we don't go left or right, but a point where we go deeper. What are the moral choices and challenges that underlie our political debate? How do we create a moral center? That's what the country is hungry for, I think.

The second danger is scaring away people who, for whatever reason, are not Christian, or not religious at all. A lot of my Jewish friends get nervous of religion in the public square because they know they're going to be left out. It always becomes Christian somehow, so that's a legitimate fear on their part. We all need a moral discourse on politics, and we're all needed for it. Some of the most encouraging comments I got on the book tour were from people who would say, "I'm an agnostic. Thank you for making me feel welcome tonight in this conver-

In Need of a Movement? *Rock singer and poverty activist Bono at the World Economic Forum in Davos, Switzerland. Rev. Wallis believes that a spiritual movement is necessary in the fight against global poverty. (Feferberg/Getty Images)*

I think we're looking now at a new altar-call, if you will, and it's going to be around poverty. Poverty is the new slavery.



Evangelical or Fundamentalist? *Jerry Falwell delivers an address to a rally sponsored by the Family Research Council in January 2006. Rev. Wallis claims that while often labeled an "evangelical," many members of the religious right such as Falwell are really "fundamentalists." (Fusco/Getty Images)*

The religious right is just an echo; they're a parody. Religion is a partisan wedge for them to win elections, to divide people.

sation because I want to be part of moral discourse on politics, too. I'm not sure about religion though." So I want to see a space created where everyone feels welcome to this conversation. As long as you want to have a moral conversation about politics, you've got to be welcome. King did that. He just convened a conversation and everyone was welcome to it. I want to make sure people feel that way.

You introduce the notion that "religion must be disciplined by democracy." How will we see this carried out?

Well, that's the next step. You don't say "it's a Judeo-Christian country, so we get to win," or "God woke me up last night with the answer to Social Security and here it is." There is a need for some humility and religious people have to win the debate in the public arena about what's best for the common good. You don't get to say I win because I'm religious. King had to persuade his fellow citizens that a Civil Rights Act in 1964 and a Voting Rights Act in 1965 were the best things for all Americans, not just Baptists, or black people, or religious people—that this was best for all of us. That's what I mean by being "disciplined by democracy." You can bring your convictions to the public square and say they're there because of my faith, but then you've got to have a debate and win the discussion on moral grounds, on common-good grounds, and what's best for society.

You often cite Dr. Martin Luther King, Jr. as a man who successfully integrated religion with politics. King said, "The church is not meant to be the master of the state, nor the servant of the state, but is meant to be the conscience of the state." What is the greatest threat to corrupting the delicate balance between church and state and allowing the church to become what King warns against?

In short, making religion into a partisan wedge to divide us, instead of religion as a bridge that brings us together on the biggest and most important issues.

You've spoken a bit to this issue earlier on, asserting that you believe strongly in secularism, but what explicit role does religious freedom play in your vision for an ideal American society? If we are all to be guided by religious principles and affected by religious language, is there really a place for secularity in public life?

Religious liberty is crucial. People have to be free to express whatever religious faith they have or don't have. There can't be any second-class citizens in the U.S. I think the wisdom of the founders was to separate church and state, and not to diminish the role of religion but to strengthen it. Look at what's happened: Religion is flourishing in the U.S., but in Europe it's almost dead because they never got over their church-state linkages and religion was corrupted by state power and compromise. That's why I'm against making religion into a partisan wedge. But I think we've really got to cherish a society that doesn't have a religious litmus test, a society where people can say "I want a moral discourse."

I think the future of American politics will be a discussion about values, and that's good and right because we all want our values to be a kind of moral compass for politics. I want to ask a candidate about values—what's their moral compass—and that's fair enough. But not their religion. I don't want to vote for a Jew because I'm a Jew, a Baptist because I'm a Baptist, a Christian because I'm a Christian. Martin Luther said, "I'd rather be ruled by a competent Turk than an incompetent Christian." That's a good insight.

Does Democracy Need Religion?

Faith and Freedom in the American Experience

By Joseph Loconte

The French statesman Talleyrand returned from a visit to the United States during Jefferson's presidency and was out of sorts. He was struck by the diversity and energy of the nation's religious groups—quite unlike anything in his native Catholic France. But that wasn't what troubled him. "I found there a country with thirty-two religions," he remarked, "and only one meat sauce."

European elites, as well as their American counterparts, are much more worried about American religion these days than they are about American cuisine. Indeed, ever since the terrorist attacks of 9/11, a storm cloud of suspicion—and outright hostility—has settled over the debates about religion and public life. Unchecked, it will not only poison our politics but weaken our democratic freedoms.

The problem is truly transatlantic. European leaders, for example, openly mock the "theocratic" flavor of American politics. Just days after a second round of bomb attacks in London, Polly Toynbee of *The Guardian* starkly warned about religious conservatives of all kinds. "How could those who preach the absolute revealed truth of every word of a primitive book not be prone to insanity?" she asked. Criticism of conservative belief, though, is equally strident among American elites. William Thatcher Dowell, of New York University, sees support for the public posting of the Ten Commandments as "made-in-America Wahhabism." Historian Arthur Schlesinger Jr. calls President Bush "a fanatic" because of his use of moral and religious language. "The most dangerous people in the world today," Schlesinger writes, "are those who persuade themselves that they are executing the will of the Almighty." Author Gary Wills says the political prominence of Christian conservatives signals the eclipse of Enlightenment reason and an invitation to fanaticism. "Where else do we find fundamentalist zeal, a rage at secularity, . . . and fear and hatred of modernity?" he asks. "We find it in the Muslim world, in Al Qaeda, in Saddam Hussein's loyalists."

Others locate the problem not only with conservative religion, but with traditional belief in God. Writing in the *New York Times Magazine* just weeks after 9/11, Andrew Sullivan voiced a typical note of contempt: "If you take your beliefs from books written more than a thousand years ago, and you believe these texts literally, then the appearance of the modern world must truly terrify." His conclusion: "It seems almost as if there is something inherent in religious monotheism that lends itself to this kind of terrorist temptation." The same theme was sounded recently by Robert Reich, former Labor Secretary under President Clinton. "The great conflict of the 21st century will not be between the West and terrorism," he wrote. "The true battle will be between modern civilization and anti-modernists, between those who believe in the primacy of the individual and those who believe that human beings owe their allegiance and identity to a higher authority."

What an astonishing reversal: the American creed affirming the God-given worth of each individual—the most transformative doctrine of liberal democracy—is dismissed as an attack on "modern civilization." This is the new dogma of liberalism at the beginning of the 21st century. It represents not only a break with the religious beliefs of the vast majority of Americans; it is a radical departure from the democratic assumptions of the Founding generation.

For all their revolutionary idealism, the American Founders were the most realistic political leaders in history. No generation took the problem of human sin more seriously. None thought more deeply about how to reconcile the tragedy of human nature with the idea of representative government. "Even if every Athenian citizen had been a Socrates," warned James Madison in The Federalist Papers, "every Athenian assembly would have been a mob." In addition to a political system of checks and balances, they reasoned, democracies needed citizens of virtue—and religion was the surest way to produce them.

The religion foremost in their minds, of course, was Christianity. Even Thomas Jefferson, perhaps the most

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A Need for Religion? *American Atheists protests the current Pledge of Allegiance outside a California courthouse. Mr. Loconte asserts that after 9/11, "a storm cloud of suspicion–and outright hostility–has settled over the debates about religion and public life." (Sullivan/Getty Images)*

religiously unorthodox of the Founders, publicly praised the political benefits of faith. "No nation has ever yet existed or been governed without religion, nor can be," he said. "The Christian religion is the best religion that has ever been given to man, and I as chief magistrate of this nation am bound to give it the sanction of my example." John Jay was utterly sober in warning of the consequences of widespread disbelief. "No human society has ever been able to maintain both order and freedom, both cohesiveness and liberty, apart from the moral precepts of the Christian religion," he said. "Should our Republic ever forget this fundamental precept of governance … this great experiment will then surely be doomed."

For the generation of Madison and Jefferson, the final check against government abuse of power was to be citizens animated by the moral claims flowing from their faith in God.

By rejecting this basic precept, liberal thinkers unwittingly are putting our democratic experiment at risk. How? By publicly denigrating religion, they undermine respect for faith-based institutions. By denying that certain rights are natural and unalienable—the gift of a Creator—they place all rights at the mercy of elites. By demanding a rigid separation of church and state, they pressure courts, schools and other public institutions to marginalize religious ideals. Yet, as many social scientists predict, the greater the decline of religious belief and practice, the greater the social breakdown and the more government must intervene to fix it. Thus, by admitting no moral authority outside of the individual, liberals invite a massive expansion of government scrutiny, regulation, and control over everyday life.

Yet, for the generation of Madison and Jefferson, the final check against government abuse of power was to be citizens animated by the moral claims flowing from their faith in God. That's why the Founders made religious liberty the "first freedom" of democratic government. They put the emphasis on freedom of religion, creating as much civic space as possible for religious institutions to challenge the state and impart the virtues needed for citizenship. This, in part, was what they meant by a nation "under God."

Consider one of the fruits of America's understanding of faith and freedom: our deep tradition of social protest and social reform. Who led the decades-long fight to end slavery in the United States? It was Northern evangelicals who petitioned lawmakers, rescued runaway slaves, and helped give birth to the Republican Party. Who launched massive rescue missions for thousands of poor families during the economic upheaval of the early 20th century? It was a British import known as the Salvation Army. Who led the civil rights movement in the face of violent white supremacists and a hostile legal culture? A Baptist minister, the Reverend Martin Luther King, joined by brave foot soldiers from black churches around the country. Who is now leading America's campaign against the sexual trafficking of women and children around the globe? It is conservative Christians, mobilized through churches and non-governmental organizations.

In each case we see the energy and idealism of religious believers, unmolested by the secular state. America's historic commitment to religious liberty is what makes possible these great challenges to corrupt political and social regimes. In *The Fourth Great Awakening and the Future of Egalitarianism*, economist Robert Fogel says that it is impossible to understand America's commitment to social justice apart from the moral influence of religion. Churches and the lay movements they spawned "have often

served as critics of state policy and as advocates of individual rights," he writes. "They played a leading role...through which the common people have been drawn into the process of shaping American society."

No one is claiming, of course, that religious freedom is beyond abuse in the United States, either by pastors or politicians. William Livingston, an 18th century Presbyterian leader in New York City, complained that "there is more Iniquity committed under the Robe, than is repented of under the Gallows." Fair enough. Religious belief has indeed been a source of incalculable human suffering. But the Founders, who were acutely aware of the legacy of sectarian violence in Europe, never became cynical about Biblical religion.

By contrast, modern elites have championed the idea of democracy divorced from the ideals and institutions of religion. Elections, political institutions, and an ethos of "tolerance" will keep the democratic machine running; no need for tough-minded belief or the "virtuecrats" who wear it on their sleeves.

Behind this thinking lurks an old utopian idea: the belief that human nature is ripening toward perfection, thanks to education, economic equality, science, and secularization. Progressives here and in Europe are animated by the secular ideals of the Enlightenment—with its exaltation of the individual ego—and oppose any religion that might stand in the way. How they manage to sustain this attitude, in light of the atrocities committed in the name of secularism in the last century, beggars the imagination.

Nevertheless, the 9/11 attacks have only deepened their hostility. Virtually all traditional religious views—whether Catholic, Protestant, Jewish, Islamic, or otherwise—are now considered a brand of fundamentalism that threatens civic peace and individual freedom. Thus, liberal academic conferences probe the violent irrationality of faith, aided by silly books such as *When Religion Becomes Evil* and *The End of Faith: Religion, Terror and the Future of Reason*. "While religious people are generally not mad, their core beliefs absolutely are," writes Sam Harris. "In fact, it is difficult to imagine a set of beliefs more suggestive of mental illness than those that lie at the heart of many of our religious traditions." Religion as pathology: here is the revenge of Freud, only cruder and dumbed down.

Perhaps it is time for the leaders of modern liberalism to reflect on the observations of another Frenchman. Alexis de Tocqueville's insights into the sources of America's political and social strength, recorded during his visit in the 1830s, are enduringly relevant. No foreigner understood better the inseparable link between faith and freedom in the American experiment. "The Americans combine the notions of Christianity and of liberty so intimately in their minds that it is impossible to make them conceive the one without the other," he wrote. "If any hold that the religious spirit which I admire is the very thing most amiss in America … I can only reply that those who hold this language have never been in America and that they have never seen a religious or a free nation."

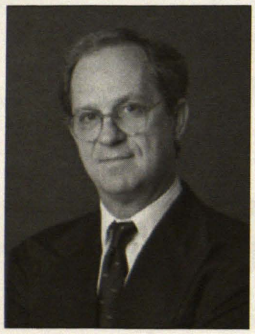
European distaste for American religion might be excused as ignorance of the facts on the ground. But America's leaders and others who abhor the nation's religious spirit do not have that excuse. What they have instead, it seems, is a chronic disposition to doubt—not to mention a studied disregard for the lessons of history. Whether American democracy can sustain itself in the grip of such doubt and disregard is an open question. P

America's historic commitment to religious liberty makes these great challenges to corrupt political and social regimes possible.

Under God: *Mr. Loconte argues that the Founding Fathers, including Thomas Jefferson, viewed religion as politically and practically beneficial. (Wong/Getty Images)*

Religious Liberties and Public Faith

An Interview with Dr. Jeremy Gunn



Jeremy Gunn is the director of the Program on Freedom of Religion and Belief at the American Civil Liberties Union (ACLU). Dr. Gunn has previously served as Senior Advisor to the U.S. Ambassador for International Religious Freedom, and a Senior Fellow at the Institute for Peace. On January 31, he sat down with The Politic to discuss the ACLU's positions on the place of religion in American politics and government.

In a survey of ten Western nations, America was found to be by far the most religious. Nearly all respondents said faith was important and 40% said religious leaders should try to sway policymakers. Why is this the case in America, and how does the ACLU view this seemingly popular attitude?

Public opinion polls do indeed show that Americans profess to be more religious than citizens of other developed countries. There probably are two reasons for this. First, the laws and Constitution of the United States traditionally have been understood to provide that government should not be involved in religious matters, including funding religious activities and deciding what should or should not be recognized as a religion. By keeping the government out of religious matters, and by preventing religious groups from using governmental powers to support their religious beliefs, the United States has long benefited from the wisdom of James Madison: Both religion and government prosper best when they stay out of each others' domains. The second reason is that there has been a long, albeit erratic, tradition of public rhetoric in the United States declaring that we are a religious country. Thus, it has become part of a perceived national identity.

Many on the left cite the current restrictions on gay marriage as an intermingling of church and state, yet a significant majority of Americans support these restrictions. How do you reconcile the separation of church and state with the democratic will?

This is less of an issue of the separation of church and state and more an issue of fairness. Why should a majority be able to prevent two people in a committed relationship from engaging in such normal activities as sharing medical benefits or living together if they so choose? One very real sign of progress in the United States during the last fifty years has been the slow breakdown of discriminatory attitudes against people on the basis of their racial, religious, ethnic, and gender identities. Fifty years ago, many people—in some places a pronounced majority—thought that such forms of discrimination were perfectly acceptable. Sometimes religion and the Bible were even used as justifications for keeping people in a subordinate status. Importantly, other people saw in the Bible and in religion the teachings of tolerance, fairness, respect, equality, humanity, and love for all people. We need to understand discrimination for what it is—a prejudice that denies fair treatment to others regarding housing, healthcare, employment, and that stereotypes on the basis of who they are.

Upon nominating Harriet Miers to the Supreme Court, President Bush cited her religion as a criterion in his decision to nominate her. Is this a reasonable factor in nominating someone to the Supreme Court, or to any government position for that matter?

In Article VI, the Constitution explicitly prohibits "a religious test for public office." President Bush's statement about Harriet Miers appears to have been an explicit attempt to promote her on the basis of her personal religious views. Although people debate whether his endorsement technically crossed the line on Article VI, it certainly violated the spirit of the Constitution. As a citizen, Ms. Miers is fully entitled to her First Amendment rights. But her religious beliefs should neither qualify her nor disqualify her for public office, where she would be sworn to uphold the Constitution, not her religious beliefs. The President's comment was an unfortunate reminder that people continue to be judged on the basis of their religious opinions.

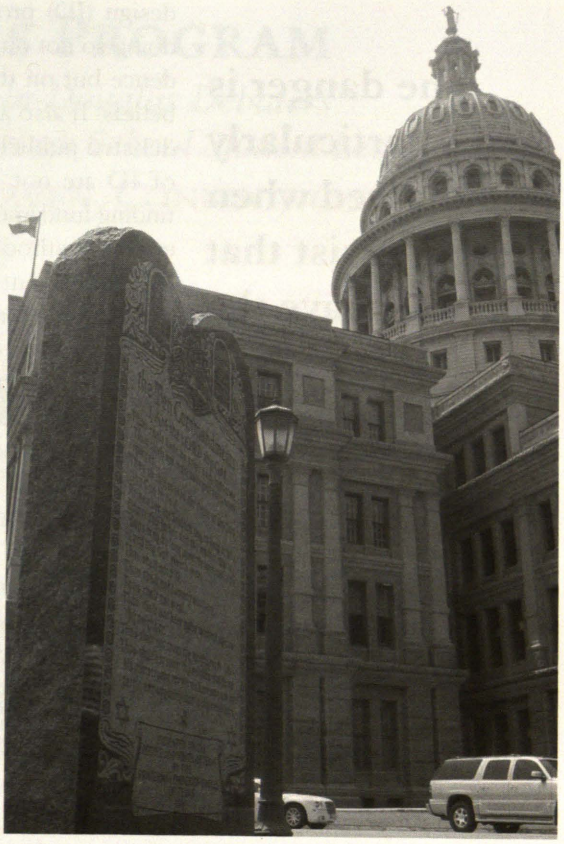
In a *New York Times* editorial, former Republican senator and Episcopalian minister John Danforth claimed that the Republican Party has lost its base, becoming an extension of the religious right. Is this a valid assessment? If so, when did this shift occur? What does the future hold for the relationship between the Christian right and the Republican Party?

The ACLU is a non-partisan organization, and, as a result, commenting on intra-party political debates goes beyond the ACLU's formal role. That said, most observers date the rise of the religious right as a political force to the late 1970s, though of course there were antecedents. Whether people are religiously conservative or liberal—or not religious at all—is very much a matter for their own consciences, and their right to hold such beliefs and to express them needs to be respected.

However, both history and contemporary international politics certainly show the dangers—from the perspective of civil liberties—when people try to turn their religious beliefs into a political platform and then insist that governments support their religious institutions. The danger is particularly pronounced when people, who are quite fallible, after all, insist that they have the absolute truth based upon a private revelation and that others who do not accept their truth are evil or dangerous. The best forms of public debate are when all participants are fully informed, rely on verifiable evidence, try to understand and respond to others' concerns, and rationally explain what they are promoting, rather than simply saying that they know what is right.

France, in enforcing a strict division between church and state, forbids the display of religious symbols in its public schools. This brings up the interesting question of how far government should go to enforce its own secularity. Where do you think that we should draw the line between freedom of expression and separation between church and state?

The 2004 French law prohibiting children from wearing conspicuous manifestations of religious symbols in public schools was a very unfortunate measure. In a sense, France has made a similar, albeit opposite, mistake to what some people are advocating in the United States. It is just as wrong for a government to prevent genuine personal religious expression as it is for the government to promote certain types of religious expression. For students at public schools, such manifestations should be a matter of conscience for the children and their families. The state has no business telling its citizens which manifestations are permissible and impermissible unless the manifestations are in fact disruptive to others. But, just as the state should not forbid genuine personal religious expressions, so the state should not be mandating religious expressions. Religion is a matter properly within the domain of faith communities, families, and individuals, and the government should stay away from it.



Wrong Place? *The Ten Commandments monument still stands outside of the Texas State Capitol after the Supreme Court ruled 5-4 in its defense. Dr. Gunn disputes the constitutionality of such a monument. (Birchum/Getty Images)*

The United States has long benefited from the wisdom of James Madison: both religion and government prosper best when they stay out of each others' domains.

The ACLU has been outspoken in its rejection of intelligent design being taught in science classrooms. Do you think that advocates of intelligent design are purely religious in motivation, or do you think that they seek to raise legitimate concerns about the ability of evolution to explain the world around us?

It is difficult to know the real motivations of people and I prefer to stay away from such speculations. It can be said, however, that Judge Jones, in the Dover intelligent design trial, did find over-

The danger is particularly pronounced when people insist that they have the absolute truth based upon a private revelation and that others who do not accept their truth are evil or dangerous.

whelming evidence that many intelligent design (ID) promoters in that case were doing so not on the basis of scientific evidence but on the basis of their religious beliefs. It also appears that as the issue is debated publicly, the principal advocates of ID are not trained scientists who are finding fundamental problems with the scientific method, but people who object to some scientific theories on religious grounds. Legitimate scientific inquiry that challenges any component of a scientific theory is perfectly appropriate—and those who believe that ID has useful explanatory powers should certainly engage in real scientific research to prove their points.

At this point, however, ID is principally a political, religious, and ideological debate, not a genuine scientific controversy. It is also very important to remember that ID is very controversial within the religious community and that many important scientists—who personally are people of faith—reject it. Schools should not be in the business of deciding which of many competing religious beliefs should be taught as if they were science.

What are your thoughts on President Bush's faith-based initiatives? Do you think that these programs are legitimate if their ends are explicitly secular, and if the organizations that receive government aid do not discriminate between potential beneficiaries based upon their religion?

It is important to remember that President Bush failed to get his faith-based initiative through a Congress that was controlled by his own political party. Rather than having Congress debate, vote on, and adopt a new law, he simply circumvented the process by issuing administrative decrees. Regardless of whether it should ever be appropriate for a religious organization to receive government funds to administer a social-welfare program, such programs should never discriminate on the basis of religion in their distribution of aid and with regard to employment practices, and they should certainly never use federal funds to promote their particular religious beliefs. Unfortunately, there is evidence that such religious discrimination does occur.

The summer of 2005 witnessed two interesting, and some say contradictory, rulings by the Supreme Court concerning Ten Commandments displays on government property. Could you explain the ACLU's position on these rulings?

The ACLU believes that government bodies should not be in the business of endorsing either religion or non-religion, and they most definitely should not be in the business of endorsing some religious beliefs over others. Although the Ten Commandments originated in one particular religious tradition, there are now many different versions from which to choose, including Catholic, Jewish, Protestant, and Puritan. Any decision about posting the Ten Commandments would necessarily mean preferring one religious interpretation over another. James Madison understood it exactly right: government officials should not be deciding which religious teachings should be endorsed.

Moreover, the Bible contains hundreds of commandments, including one that specifies exactly where they should be posted. Deuteronomy 6:9 explicitly states that the place to post the commandments is on the doorposts and gates of our homes—and it certainly does not recommend erecting engraved images of them, where moss and rust doth corrupt, on government property.

Targeting Islam? *Muslim women protest the French law banning headscarves and other "conspicuous" religious symbols from public schools. Dr. Gunn argues that this law encroaches on freedom of expression. (Segretain/Getty Images)*

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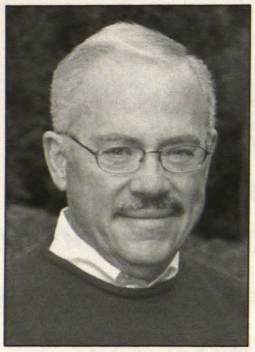


Big Brother Goes to College

Free Speech and Higher Education

By Representative Bob Barr

College campuses have always been incubators for the rough and tumble debates so critical to keeping America's political landscape alive and vibrant. The abolition of slavery, the Civil Rights movement, the Vietnam War, and the resurgence of conservatism in the 1980s and 1990s are among the political battles decided largely through campus political activity.

The winds of political change in America frequently form at, and are almost always fanned by, college and university campuses across the land. It is here, in the university environment, that the unique combination of unfettered speech, professors well-versed in history and current events, and students eager to learn and be exposed to new ideas coalesces into organized movement. The groundwork is here laid to transform raw ideas and vague notions into coherent plans.

For this reason alone, America's college students should be especially sensitive to changes in the way public speech in America is regulated. And, at no point in our nation's history has this concern been any more salient than it is today.

Sadly, however, in today's post-9/11 environment, truly free speech on campus—or in society generally for that matter—scarcely exists at all.

Let's say you're a junior or senior in college with a well-developed opinion on ending the war in Iraq or shutting down affirmative action programs. Presume further you care sufficiently about that issue to want to be heard on it in a meaningful way. In past years, you might have written a confrontational news column, staged an over-the-top piece of street theater, or even sponsored some kind of larger scale rally or act of civil disobedience.

Fast forward to 2006. You're sitting in your dorm room trying to decide how far to push the envelope in making an unconventional or unpopular view heard. First, you think about how it might impact your future. Unlike your predecessors in the 1960s, your act of protest won't fade with time. Thanks to electronic databases, massive data-mining of private information, and ever-present video surveillance, anything you write and much of what you do in public, will be retained somewhere in some entity's database. Tomorrow or 20 years hence, anyone, including a prospective employer, lender, or spouse, can easily pull it up from the internet with the click of a mouse. The dramatic increase in the number of media outlets and 24-7 cable news programming increases the risk that something you've done that becomes newsworthy in someone's view, at some point in the future, will become widely known whether you want it to or not.

Then, you wonder, how might the political correctness police on campus interpret your act of free speech? Will you fail to use the appropriate gender pronouns, unleashing a pack of angry feminists? Will you unknowingly make a racial slur that upsets an obscure tribe? Will some White House political operative come across it and conclude you are insufficiently loyal to your party or "your" president to warrant a political appointment for which you are eminently qualified? There will always be the possibility that what you wrote or said back in college will get you passed over for your first job, or a job later for which you've devoted an entire career to achieve, in favor of someone who hasn't been thus tarnished.

You have to ask yourself, "What are my odds of ending up in some sort of trouble over this act of speech?" Becoming a suspected terrorist in our post-9/11 world ruled by fear fanned by government power is easier than

Bob Barr *represented the Seventh District of Georgia in the U.S. House of Representatives from 1995-2003. Early in his career, he was an official with the CIA, and in 1986 President Reagan appointed him as United States Attorney for the Northern District of Georgia. While in Congress, he achieved national prominence as a leader in the impeachment of President Clinton. Though he voted for the Patriot Act, he authored its sunset clause, and since leaving office, he has been among the legislation's most vocal critics. Recently he has focused on issues of civil liberties, consulting with groups as diverse as the American Civil Liberties Union and the National Rifle Association.* New York Times *columnist William Safire, recognizing Mr. Barr's leadership in privacy matters, has dubbed him "Mr. Privacy." He is currently a public policy consultant and hosts a nationally-syndicated radio show, "Bob Barr's Laws of the Universe."*

walking a block in Manhattan to find a Starbucks coffee shop. Having your name appear on some government watch list—usually without your even knowing you have been thus honored—can have all sorts of consequences, none of them good and all of them long-lasting. Citizens whose names appear on such lists may have bank accounts precipitously closed, perhaps have credit for a car purchase arbitrarily denied to them, and almost certainly find themselves subject to frequent searches at airports here and abroad.

For those contemplating engaging in some form of public protest, stories of other such persons being visited by federal law enforcement officers asking about planned protests raises further fears. The fact is, the number of protestors being jailed and prosecuted by state and federal authorities has become alarmingly high.

After doing the math, it's not surprising that many students—and teachers for that matter—decide the benefits of speaking out aren't worth the risk. Instead, they make what they hope will be an anonymous post on a message board, comment to friends at a party, and move on to something less risky, like studying for a chemistry final or playing computer games online.

In turn, the flow of ideas that have historically nourished the roots of the American republic slows to a trickle. People are becoming afraid to speak out, rightfully concerned that doing so will create a black mark on their file which may very well hurt them in future political, economic, personal, and professional endeavors.

The first cause—the development of databases that track and store numerous bits of information about everything we do—clearly isn't going to go away. Trying to stop technological innovation and application in a market society is, more often than not, a fool's errand. The inescapable fact is that our past is now inescapable; we each now go through life with our past actions tied around our necks like an electronic albatross.

Comprehensive, tough, and meaningful legislation is needed that: (1) places limits on government and industry databases and data mining thereof; (2) ensures that only reasonable and accurate government watch lists are maintained; and (3) establishes meaningful mechanisms whereby citizens are able to ensure the accuracy of the information maintained on them and to correct errors. Unfortunately, it appears the Congress is decidedly uninterested in pursuing such legislation, which the current Administration would almost certainly veto anyway. Thus, the fears that give rise to an unwillingness to risk engaging in free expression will continue to be very real and very pronounced.

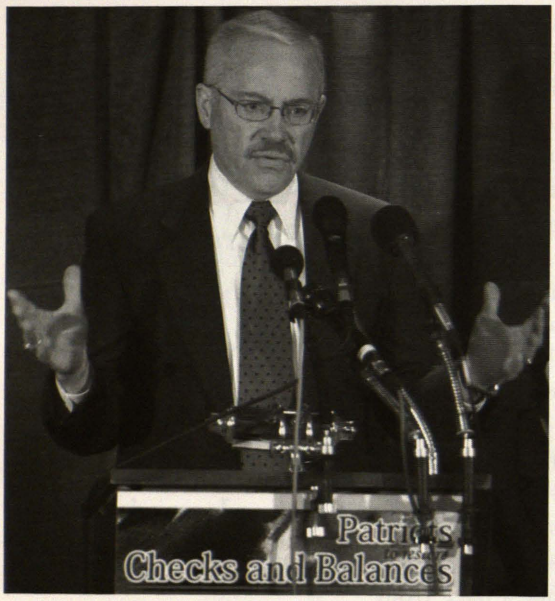
One small—but meaningful—way we can soften the harsh, anti-free speech environment in which much of Western civilization finds itself is to look at our collective attitudes. To take a page from our 1960s progenitors, we need to "lighten up, dude." That mantra applies to both the left and right sides of the political aisle.

In the post-9/11 environment, truly free speech on campus—or in society generally for that matter—scarcely exists at all.

***All Eyes On You**: An infrared thermal imaging camera monitor is displayed at the Maritime Security Exposition 2004 in New York as an example of new technology for protecting ports, harbors, and terminals from criminal activity. Congressman Barr argues that the public should be vigilant regarding the use of domestic surveillance. (Spencer Platt/Getty Images)*

On the left, the little pockets of self-appointed speech Nazis need to be treated like the angry children they are—essentially to be ignored and not allowed to eat any more ice cream until they start acting rationally. In point of fact, no one is being oppressed in any way that matters if the right mix of gender pronouns isn't used in a speech or the racial hyphenation du jour isn't included in an internal memo.

When accusations of racism, sexism, anti-homosexual bias, or hate speech are made—particularly on university campuses—we need to look at them with some basic sense of perspective and suspicion. If we don't, not only do we vic-



***Patriots for Privacy**: Congressman Barr speaks during a press conference announcing the creation of the group Patriots to Restore Checks and Balances, in March 2005. The group was formed to "fix" the Patriot Act to enable the government to fight crime while preserving important checks and balances on law enforcement, thus limiting undue government intrusion into the private lives of average Americans. Mr. Barr is chairman of the group. (Joe Raedle/Getty Images)*

The inescapable fact is that our past is now inescapable; we each now go through life with our past actions tied around our necks like an electronic albatross.

timize innocent individuals, we also dishonor the many citizens of our country and others who have endured true repression. Can you imagine what Solzhenitsyn or Sharansky would say if either of them had to listen to someone whine for hours at an academic conference because someone said "he" more times than "she"?

On the right, things aren't any better. The protect-us-at-any-cost advocates in the Republican Party make or allude to promises of absolute security for voters, in return for an increasingly strong executive branch. Of course, true conservatives, like their counterparts on the left, know that such a commodity—absolute security—can never be delivered in any society, especially one that is truly free. Of course, insofar as most current day Republicans are not true conservatives anyway, the GOP increasingly clamors for the funding and deployment of a federal security apparatus that is breathtaking in its size, scope, and sheer power. That enforcement apparatus has increasingly been directed at protestors who would have largely been ignored in past years.

For example, anti-mask statutes originally developed to shatter the terror of the Ku Klux Klan are now being employed against peaceful demonstrators who wear masks, not to commit crimes or to terrorize, but to mock a major political figure such as the President or other world leaders. This clearly goes against the intent of anti-mask laws, but that doesn't stop 21st-century law enforcement from employing them anyway.

The U.S. Secret Service has also gotten in on the act, taking the federal statute designed to create safe zones, the size of which is not defined by law, around the President and other protected persons, and extending them to increasingly large areas in which such persons speak or through which their ever-lengthening convoys travel. Individuals entering those zones are often detained if they exhibit any hint of disagreement with the Administration, while those who show support for the President are allowed to hang around. Not only this, but Republicans in the Congress continue to push for the Secret Service to have the ability to keep protestors—or anyone else for that matter—out of areas which it designates as undefined "national events of special significance" regardless of whether a protected person is there, is going to be there, or was present.

These kinds of policies are clearly intended to chill speech far more than to protect anyone, but that has not stopped their multiplication at all levels of government.

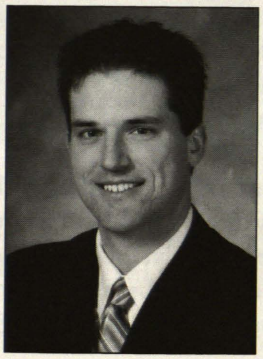
For example, it has been recently revealed that local police in New York City, and probably elsewhere, have been dressing in character, joining in various demonstrations, including many that are not political, and themselves engaging in actions that have the effect of inciting behavior in others that results in arrests. The mindset that gives rise to such outrageous behavior by the police, however, is mirrored in post-9/11 federal law enforcement tactics that allow for agents to infiltrate religious and other groups in order to record what transpires and to gather data.

The reality here is that we can never make the world into a completely sterile and safe environment without sacrificing most of the freedoms that make us what we are. The watchword should be *balance*: achieving the highest degree of security reasonably possible, but without implementing the so-called safeguards that take away our very freedoms. That notion of balance seems today largely a distant memory.

The American public square, especially the university quadrangle, is rapidly becoming a place where new ideas are smothered in the crib before they ever have an opportunity to take root. This is a tragedy for advocates of free speech, and one of which college students should take particular notice. After all, they're the ones who will be inheriting the brave, new political world that results from today's policies driven by fear and fueled by ignorance.

From Bulldog to Barnstormer

An Interview with Congressional Candidate Scott Kleeb GRD '07



Scott Kleeb is running for Congress as a Democrat in western Nebraska's 3rd District, where 75 percent of voters chose the Republican in the 2004 election. Kleeb earned an M.A. in international relations and a Ph.D. in history from Yale. He wrote his dissertation on the history of American cattle ranching and in 2005 served as a teaching assistant for Professor John Gaddis' Cold War history class. On February 2, Kleeb spoke with The Politic about his current life in politics. More information about his campaign can be found at www.scottkleeb.com.

What made you decide to run for Congress?

The process began when I was doing the research for my dissertation. I traveled through 22 states west of the Mississippi River, covering 65,000 miles in my pickup. I was trying to understand how American agriculture is changing in the era of globalization. As I traveled, I was struck by the way it is becoming harder for many people to make a living doing the things their families have done for generations, whether farming, ranching, manufacturing, or owning and operating a small-town business. At the same time, I visited some towns that are far more prosperous and vital today than they were 20 years ago.

I couldn't help but ask myself: What is it about this new American economy that brings such terrific opportunities to some, while at the same time making it hard for others to maintain the communities and traditions and lifestyles that make Nebraska such a great place to live? And the answer I heard over and over again was, 'We need somebody in Congress who understands what's happening out here. We need someone who will take a hard look at how national policies – whether in agriculture, education or health care – can strengthen these rural economies.'

When I returned to Yale, I was a TA for John Gaddis' Cold War class. The day after the presidential election in 2004, I came in and I said to him, "John, we got beat very badly last night. We need to find a way to get the Democratic message out to the parts of the country that you and I are from." He said, "You're right." I said, "John, I'm serious." He said, "So am I." I came back to him the next Wednesday, and said, "John, I'm gonna do it." He said, "I knew you would." Throughout the whole process, John has been an advisor to me. He's been with me from the very beginning, up to this interview, and beyond.

The 3rd District of Nebraska has not elected a Democrat to Congress since 1958. What makes you think you have a chance of winning a seat traditionally held by a Republican?

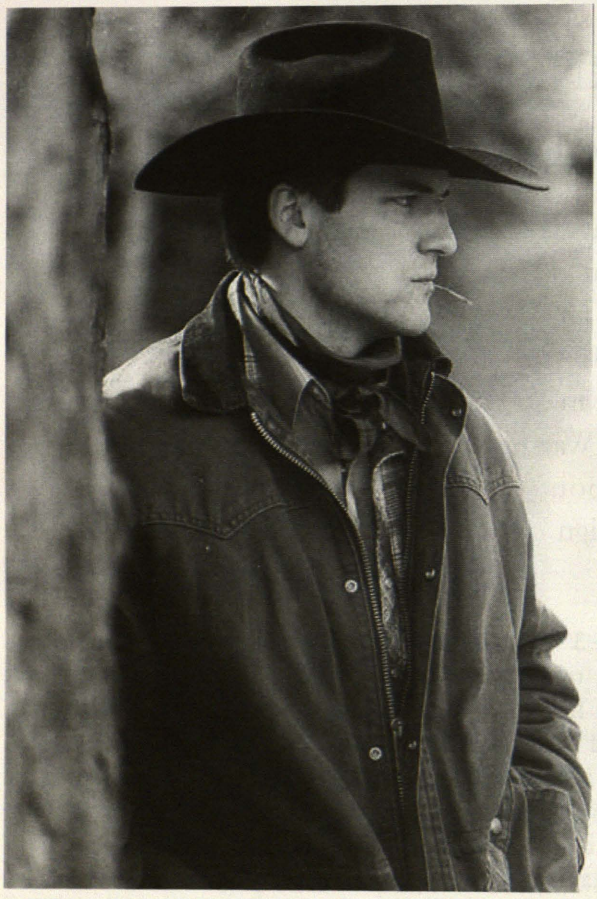
I think Democrats haven't had success because in areas like the 3rd District we haven't listened to people. We have to have the most aggressive campaigns on the ground. We have to go out to every small town and just listen to folks. That's how we're going to win. Is it difficult? Of course it is. But by just going out there and talking to people, we have had some very encouraging success so far – over 900 volunteers in the state have signed up to help us hold events, raise funds, get us interviews, and essentially make this campaign their campaign.

This congressional race needs to be about communities. We need to put people before politics and find real solutions to the problem of unequal economic development in this country.

Describe a typical day on the campaign trail. What are the main issues your campaign is focusing on?

At one of my first campaign events, I told people who I am and why I'm running, and then I said I want to listen to what your concerns are. Nine times out of ten, the first thing these people talk about is healthcare costs and not having access to medicine or care. We're an aging district where 70 percent of people are small business owners so healthcare is a huge concern.

Agriculture is a $10 billion industry in Nebraska. When I spoke at a Master's Tea the last time I visited Yale, I said that what's happening at Berkeley College is the model for the future. Every time a Yale student eats at Berkeley, they're helping a family farmer. The things that



***Maverick Politico**: Kleeb poses in his ranching apparel. While serving as teaching assistant in Professor John Gaddis' Cold War history class, he was popularly known as the "Cowboy T.A." (Photo courtesy* Yale Rumpus*).*

***Amber Waves**: A ripening cornfield in central Nebraska. Agriculture is the state's largest industry, and Kleeb would like to strengthen it further by emphasizing sustainable farming methods.*

make Berkeley so popular – direct marketing from farmers, locally produced goods, sustainable production – these are the things we need to be doing out here in Nebraska.

Finally, the high costs of energy are especially difficult for folks out here. Soaring diesel and gas prices really affect people in the 3rd district.

In *What's the Matter With Kansas,* Thomas Frank suggests struggling farmers and ranchers who live in the Plains states elect Republicans because they put social issues before their economic interests. You support civil unions and think abortion should not be criminalized. How do you intend to reach out to social conservatives who disagree with you?

When Nebraskans tell me their biggest concerns, the vast majority of the time they're talking about healthcare, agriculture or energy. I've only been asked about social issues four times on this campaign, and three times it has been by reporters. We are talking about the same things that every family in Nebraska talks about around the dinner table, and we're going to continue to talk about those issues.

As a Democrat who attended Yale, you will likely face accusations that you are a liberal elitist out of touch with the common Nebraskan. How would you respond to such a charge?

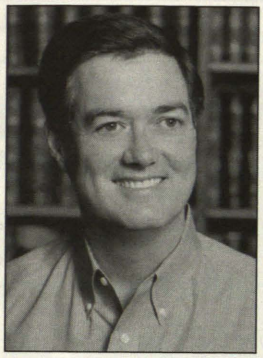
I think Yale is a great school. I don't think people hold Yale against you. People appreciate the value of good education and they want their kids to have a great education. Our president went to Yale and these accusations of elitism weren't thrown at him. It's all a matter of how you come off.

Do you think your time at Yale helped prepare you for campaigning and potentially serving in Congress?

I think my time at Yale helped prepare me. The time I was riding bulls on the rodeo team at the University of Colorado helped; the time I spent on a tractor putting up hay helped; the time I spent traveling around the country researching my dissertation helped; my small discussions in the Grand Strategy seminar helped. Every experience you have comes together to prepare you for what comes next.

Many Yale students aspire to become elected officials or to work in politics. What advice do you have for them?

Realize why you want to do it. Politics is the noblest of all professions. It's done for the right reasons. It's about having conversations with people and finding a way to deal with whatever issues they might be facing at that point.



Two Roads North

My Plan for Immigration Reform

By Governor Bill Owens

As the debate over illegal immigration escalates, one thing is clear: working alone, government will not be able to provide secure borders *and* create an effective guest worker program that helps drive the nation's economy. The only way to solve the issue of illegal immigration is through a private sector approach that will benefit all parties involved.

At first glance, it may seem as though an interior state such as Colorado has little stake in this debate. But what was once a concern only for border states has now moved center stage, and into America's Heartland. Consider this: Colorado's illegal resident population—now numbering more than 250,000—is growing faster than in any other state. The inescapable consequence of this growth is a huge drain on state and local resources, especially in the areas of education and health care.

The Colorado-based V. K. Krieble Foundation has developed a private sector, free market plan that has gained my endorsement—as well as the endorsements of such political heavyweights as FreedomWorks and the Heritage Foundation. The plan stands above others currently being considered because it effectively addresses border security concerns while also recognizing our country's reliance on immigrant labor.

First and foremost, no guest worker program will be successful without secure borders. If workers continue to cross the border illegally and are paid in cash by unscrupulous employers, a guest worker program will have little or no impact. Further, without secure borders, criminals and drug traffickers will continue to invade American soil.

To effectively address this issue, we must acknowledge that there are two distinct groups of immigrants: those who have no desire for citizenship and simply want to earn a better wage than they are able to earn in their own country, and those who sincerely desire citizenship.

The plan utilizes a two-track approach to address both groups. One track would include individuals seeking U.S. citizenship. To become an American citizen, each person would have to meet existing federal requirements that could be strengthened if necessary.

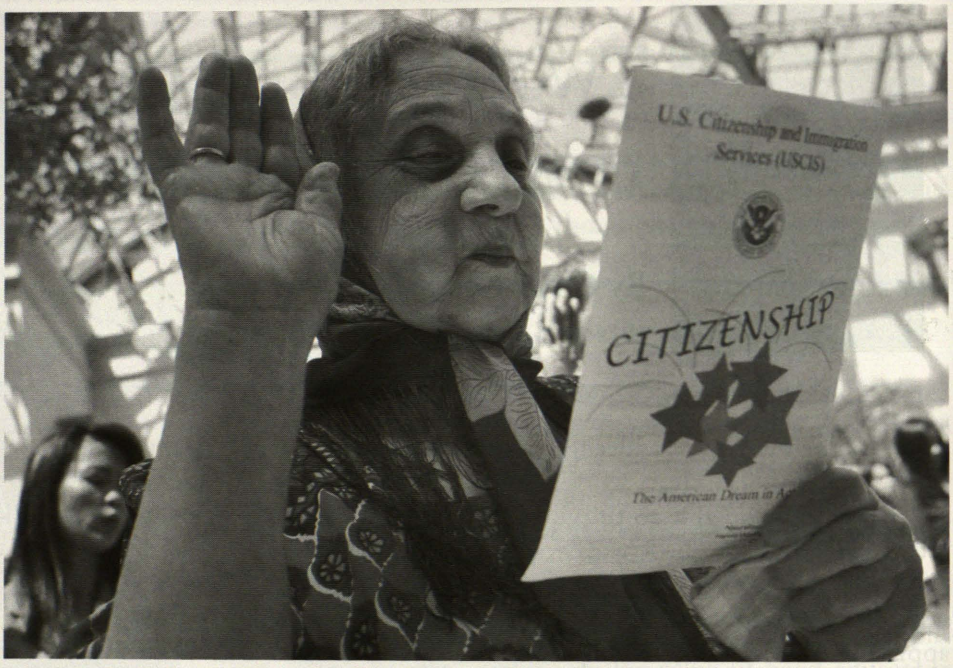
The other track, and the larger part of the equation, creates a program to provide guest workers with appropriate *legal* status. The plan would allow private employment agencies to open offices in Mexico and other foreign countries. These agencies, which would be directly licensed by the federal government for security reasons, would be empowered to issue guest worker permits pursuant to extensive background checks. Specific workers would be linked to specific jobs for specific periods of time.

A "smart-card" would be issued to each guest worker that would allow legal entry into the country for seasonal work, as long as a U.S. employer had such work available. No worker would be permitted to enter the country without an assigned job. The smart-card would also provide employers and law enforcement officials with a simple means of verifying information, helping to keep our nation more secure.

By separating guest workers from those seeking citizenship, the federal government would be able to focus more of its resources on border security. And by being less costly and considerably safer than using "coyotes" to illegally sneak into the country, the program would provide a real incentive for potential workers to participate.

The plan offers other benefits as well. Currently, illegal immigrants working in the U.S. are paying into Social Security but have no chance—because of their illegal status—of ever receiving Social Security payments. Under our plan, guest workers would instead pay into a

***Bill Owens** has served as Governor of Colorado since 1999. During his tenure, he has gained popularity for his fiscal policies, which have included the largest lowering of taxes in state history, and efforts toward capping state government spending and returning excess funds to taxpayers. Focusing on education and transportation issues during his two terms, he has been hailed as successful on both fronts, and* National Review *magazine in 2002 named him the "best governor in America." He is also an expert in Soviet affairs.*



***So Help Me God**: Seventy-six-year-old Sonya Feferman takes her Oath Of Allegiance during a naturalization ceremony in Chicago. Governor Owens says that "we must first acknowledge there are two distinct groups of immigrants: those who have no desire for citizenship and simply want to earn a better wage than they are able to earn in their own country, and those who sincerely desire citizenship." (Tim Boyle/Getty Images)*

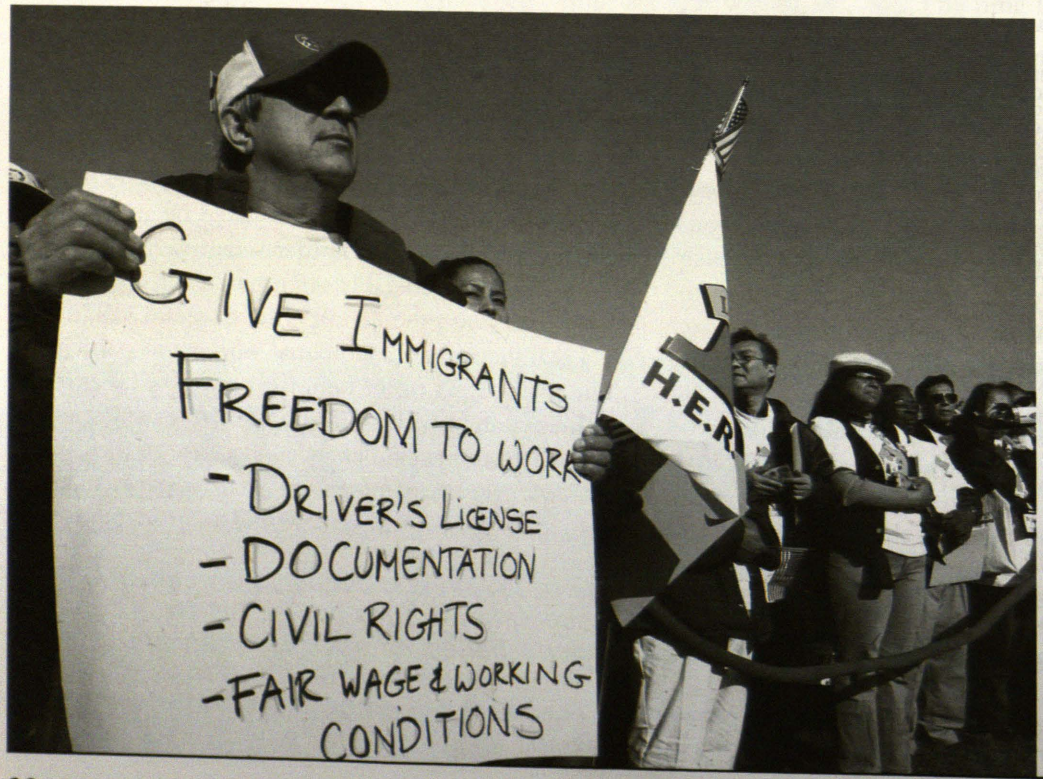
By separating guest workers from those seeking citizenship, the government would be able to focus more of its resources on border security.

health care fund from which they would derive benefits. Workers would also pay taxes to help offset the cost of the government services they already use.

Once the plan is in place, the question then becomes what to do with some 10 million illegal immigrants already in our country. Blanket amnesty is neither politically nor socially acceptable. Under my plan, illegal immigrants currently in the U.S. would have a window of time to return home, apply for re-entry and obtain a smart-card – voluntarily complying with the new registration requirements. By utilizing private sector employment agencies, permits could be issued quickly and without bureaucratic inertia.

Private sector involvement is vital to the success of this entire proposal. But it is critical that our government first secures our borders and enforces our current immigration laws. Then, and only then, will we be able to create a legal pathway to allow temporary guest workers into our country.

Given the choice, most of these workers would prefer to have legal status, but the system as it stands today drives them underground. The answer to this problem has been in front of us all along. Let the free market work. By using a little common sense, our economy can remain strong while our nation becomes more secure.



***Give Me Liberty**: Demonstrators rally in front of the U.S. Capitol in support of immigrant workers as part of a movement to press lawmakers for legalization and a path to citizenship and labor rights. (Mark Wilson/Getty Images)*

Reviving New Orleans

Restoring Culture and Spirit Through Public Education

By Ange-Marie Hancock

By now the world knows that Hurricane Katrina, the most destructive storm to ever hit the United States, left a trail of death, destruction, and debate leading all the way to the White House. As the months go by following the intervention of the U.S. military's Joint Task Force Katrina, led by native Louisianan Lt. General Russel Honoré, the focus has shifted from attention to the devastation to rebuilding the city. Few continue to question that the rebuilding process will occur; the debate now gearing up centers upon how New Orleans will restore its luster as a tourist jewel, a symbol of the long history of many races and cultures in the United States, and the birthplace of jazz.

A separate commission was created at each level of government to oversee in some way the efforts to rebuild the city and surrounding areas in Orleans and St. Bernard Parishes. New Orleans Mayor Ray Nagin named prominent local businesspeople as well as Tulane University President Scott Cowen and jazz artist Wynton Marsalis to his Bring New Orleans Back (BNOB) Commission. Louisiana Governor Kathleen Babineaux Blanco named Xavier University New Orleans President Norman C. Francis to head the Louisiana Recovery Authority (LRA), to be joined by a number of members from across the New Orleans diaspora, including political consultants Donna Brazile and Mary Matalin, women more accustomed to sitting across the table from each other rather than to working together. Finally, on November 1, 2005, President Bush appointed via executive order the Gulf Coast Recovery and Rebuilding Council, chaired by National Economic Council Chairman Al Hubbard, with council members exclusively from the president's cabinet and administration.

The First Goal: A Public-Private, Citizen-Driven, Integrated Rebuilding Effort

With the creation of three commissions by three separate levels of government, the call quickly emerged for combination and coordination of efforts. Specifically, several Louisiana residents have suggested that the LRA and the BNOB Commission should merge efforts to rebuild southern Louisiana. According to the *New Orleans Times-Picayune*, the LRA's inaugural planning conference, held November 10-12, 2005, involved 500 concerned citizens who do not want to see duplication of efforts by, or unnecessary competition among, the three commissions.

Louisiana has more than a chance to rebuild New Orleans using bricks and mortar; it has a chance to develop more participatory and egalitarian processes of public decision-making. Concern regarding the level of citizen participation in the rebuilding process was justified following the LRA's inaugural conference. Of the 500 invited conference participants, 62 percent were male, 80 percent were white, and 89 percent were from Louisiana, but not necessarily New Orleans. The participants were architects, planners, business leaders, public officials, and community leaders. Prior to Hurricane Katrina, New Orleans was 28.1 percent white, 53 percent female, and 28 percent lived below the poverty line, according to the U.S. Census. Clearly the demographics of the conference and the people displaced by Katrina didn't match.

The work of the LRA and the report of the BNOB Education Committee have so far produced "visions" that just about any citizen could appreciate. The devil is not in New Orleans, as Pat Robertson has argued; the devil is in the details regarding how to implement each of these suggestions. Both media pundits and the average citizen wonder how it will be possible to start virtually from scratch in so many policy arenas throughout New Orleans. Optimists argue it is a prime opportunity to redesign all aspects of the city—from its schools, business districts, and hospitals to its public spaces, transportation

Ange-Marie Hancock *is an Assistant Professor of Political Science and African American Studies and is the Director of Undergraduate Studies of Ethics, Politics and Economics at Yale. Her research interests include the intersectional identities of race, gender, and class and their influence on public policy. She wrote the original proposal for the Women's National Basketball Association (WNBA) and is the author of* The Politics of Disgust: The Public Identity of the Welfare Queen. *She and her family are from New Orleans.*

Both media pundits and the average citizen wonder how it will be possible to start virtually from scratch in so many policy arenas throughout New Orleans.

infrastructure, and surrounding environmental resources. Pessimists across the political spectrum doubt whether such a rebuild can occur without the gross mismanagement and corruption that, say pessimists on the right, is the hallmark of big government, or, say pessimists on the left, without erasing the possibility for many of the poor people of color to return to better opportunities. Education, of course, is just one of the policy arenas in which New Orleans must recreate nearly its entire infrastructure; 110 of 126 Orleans Parish public schools require new construction post-Katrina.

How To Provide "High Quality Education for All"?

The plan to reform schools ranked third, behind job and housing availability, as an influence on diaspora residents' decision to return home to New Orleans.[1] The principle of "high quality education for all," cited in the original LRA Visioning Conference documents and the BNOB Education Committee's recently released plan, again appeals to most Americans. BNOB's surveys and interviews produced a list of six consensus items that are quite easy to support:

1) Top quality schools in every neighborhood for every student

2) Caring, qualified teachers and leaders

3) Schools that provide a supportive environment for teaching and learning.

4) Safe schools with effective discipline.

5) Schools that engage and empower their communities.

6) Schools that embody and promote the spirit of New Orleans.[2]

***Surveying the Aftermath**: Principal Adrianne LeBlanc looks around the front office at St. Dominic's School in Lakeview, Louisiana, after her school had spent more than a month under water. (Photo by Chris Graythen/Getty Images)*

Yet New Orleans' and Louisiana's policy options are significantly constrained by the dire financial straits in which they find themselves as well as the limited range of opportunities to apply for federal assistance. There still remains no solid funding plan for rebuilding the parish's public schools. Funding for school construction is traditionally a joint effort between the state and local school districts, but given a disaster of this magnitude, it is difficult to conceive of a comprehensive school reconstruction effort without funding from the federal Department of Education (DOE).

The DOE has set up the Hurricane Help for Schools web site to connect private individuals and organizations with local school officials throughout the affected Gulf Coast region in order to match donations with recipients. There is no category on this site for donors interested in bricks and mortar. Moreover, the $750 million Hurricane Education Recovery Act signed into law by President Bush on December 30, 2005 expressly forbids the use of its funds for construction or major remodeling. This major expenditure has not yet been addressed by any of the three commissions or private citizens.

The controversial decision to reopen a limited number of New Orleans public schools as charter schools was based in part on the ability to qualify for greater funding from the DOE, which provides preexisting funding opportunities for charter schools not available to traditional public schools. Because the charter school movement has had very uneven results in terms of its success, most especially with lower-income racial and ethnic minority populations like many of the 60,000 children attending Orleans Parish Public Schools at the time of the hurricane, it is not clear that following this plan will successfully provide "top quality schools in every neighborhood, for every student," despite the eventual transition to a mixed public-private educational network model. In addition, the public school system is just part of the education system in New Orleans, which is the birthplace of parochial education in the United

States. Pre-Katrina, 20,000 children attended Catholic schools in Orleans Parish, 66 percent of whom are African American and 50 percent of whom qualify for free lunch.

The plan of the Bring New Orleans Back Education Committee, released on January 17, 2006, seeks to revitalize what they call public education in New Orleans. However, their plan utilizes an educational network model that relies on a transitional framework of all single charter schools. As I have noted, there are financial incentives at the federal level for pursuing this model. The Education Committee also cites this approach as the most expedient, accountability-based, and innovative approach. Further, they claim that an entrepreneurial environment may attract new talent, with control over budget, staffing, and service provider decisions delegated to each individual school.

There are several key problems with this model that should give the committee, the school board, and the residents of New Orleans pause. While the vision for school choice would please many conservatives across the United States, many of these same conservative voices also called for extensive oversight to prevent waste in the allocation and expenditure of the billions of federal, state, local, and private dollars dedicated to rebuilding New Orleans. An all-charter model is notoriously difficult to oversee, requiring a significant number of administrators to enforce numerous charter contracts and limited options to intervene in struggling or failing schools.[3]

In addition to the limitations the education committee noted, there is also a major teacher quality question that haunts charter schools around the country. Charter schools are permitted to conditionally accept uncertified teachers as full-time faculty while they are in the process of obtaining certification. This policy directly conflicts with the desires of "key stakeholders" questioned in the months following Katrina. According to a BNOB survey, the quality of teachers is the most important factor in evaluating the plans for reform of the so-called New Orleans public school system. Prior to Katrina, teacher quality was most frequently among the top three factors parents cited in deciding whether to enroll their children in public or parochial schools.[4]

***Lost Time**: A school calendar remains on the wall with the last date students attended classes at New Orleans-area schools. The vast majority of the parish's schools still require repair or reconstruction following Hurricane Katrina's landfall on August 29. (Chris Graythen/Getty Images)*

Funding also remains a primary concern in the final report of the Education Committee. While gestures are made towards the teacher quality question with the goal of "attraction, retention, and development of strong teachers and leaders at every level,"[5] adequate compensation for teachers fell between the cracks of the initial stakeholder report presented on December 5, 2005 and the final plan of January 17, 2006. While steps to obtain capital funding for construction are discussed specifically, the "necessary financial plans" do not specify resources allocated for teacher recruitment, retention, professional development, salaries, or benefits despite the agreement across stakeholders of the critical importance of teacher quality in creating all six aforementioned aspects of "world-class public education in New Orleans."

Well-educated and talented teachers and safe, high-performing facilities lie at the heart of the mission for world-class public education. The citizens who have and will continue to come home to New Orleans are predominantly multi-generation New Orleanians with a healthy respect for the unique racial, cultural, and spiritual crossroads created by its prime industrial location at the mouth of the Mississippi. They and their children deserve nothing less than the *lagniappe*, something extra, that they have given our country since the 1803 Louisiana Purchase: a sustainable educational system that enriches the urban space in which they live, work, love, and most importantly, welcome all of us for a visit.

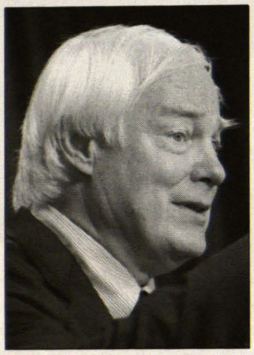
The people of New Orleans deserve nothing less than a sustainable educational system that enriches the urban space in which they live.

References:

[1] Bring New Orleans Back Education Committee Report, p.14.
[2] *Ibid*, p.6.
[3] *Ibid*, p.30.
[4] *Ibid*, p.18.
[5] *Ibid*, p.46.

Pacific Power Shifts

An Interview with Congressman Jim Leach of Iowa



Jim Leach, who represents the Second District of Iowa, has served in the United States House of Representatives since 1977. The U.S. delegate at international summits and conferences over the past four decades as well as the current Chairman of the East Asia and the Pacific Subcommittee of the House International Relations Committee, Congressman Leach has earned a reputation as a pragmatic centrist with an eye toward global issues. He spoke with The Politic on February 9.

Will the run-up to the 2008 Olympics destabilize the status quo on Taiwan? Will China use the event to humiliate its wayward island? How would Taiwan respond?

I don't know for sure, but I think that the Olympics will be more of a unifying than dividing factor. The great strength for China, in this sort of circumstance, would be in emphasizing common culture. Many Taiwanese are quite proud of Chinese advancements in certain areas, and the Olympics are perceived as a great cultural triumph for China. The Taiwanese also appreciate, by implication, that the greater the cultural tie to China, the weaker the nationalist sentiment in Taiwan. It's a balance that leans to Chinese power, but I don't think that the Chinese will try to humiliate the Taiwanese. I think they will try to use the Olympics as a kind of attractive, cultural tie to the Taiwanese people.

There has been friction between China and Japan over Prime Minister Koizumi's visits to the WWII shrine in Tokyo. Moreover, both China and South Korea have expressed disapproval with how Japan's history textbooks detail the war. How do you think these disputes will be resolved, if at all?

Though there is a latent anti-Japanese sentiment—which might described as multi-century in its dimensions—the history of World War II is one of the greatest sore points in the history of China. And it is a living history. Koizumi, presumably, is responding to Japanese public sentiment to be proud of their heritage, which is in absolute juxtaposition to Chinese sensibilities. The Chinese people are not going to let this subject go easily, and the Chinese government—in a quasi-bending to democratic sentiments—are prepared to lead in expressing dissent. Moreover, while all countries have a hard time coming to grips with moments of their history that are imperfect, it is particularly difficult for the Japanese.

How will China's deep economic interest with Iran – having signed gas deals worth hundreds of billions of dollars – affect the possibility of a lasting multilateral solution to Iran's nuclear dispute?

Personally, I am very apprehensive that the United States will get locked into a dispute that will force Iran into a pro-Chinese position. There is an abstract consensus in the world community against Iran developing nuclear weapons, but there is no consensus whatsoever on strategies to stop this from occurring. I think that China will be a beneficiary vis-à-vis the United States in the event of a confrontation with Iran.

The U.S.-led six party talks with North Korea have not met with considerable success so far. What tactics, if any, should be used to compel Kim Jong Il to negotiate in good faith?

Sometimes buying time can help all parties, including the United States in this particular case. Therefore, it is premature to say that talks haven't been at all successful. And sometimes, the communication of views between all parties helps to clarify circumstances—along these lines, the talks might actually be making progress. But they have not yet led to a lasting agreement that matters. I happen to think that the six-party framework is appropriate, but that doesn't mean that it can't be augmented by other techniques, such as direct negotiations and increased contacts. This can extend beyond executive branch relations—I personally traveled to North Korea in August 2005. I suspect that there are very few issues in the world in which both sides have a greater vested interest in making an agreement than this. But whether an agreement can actu-

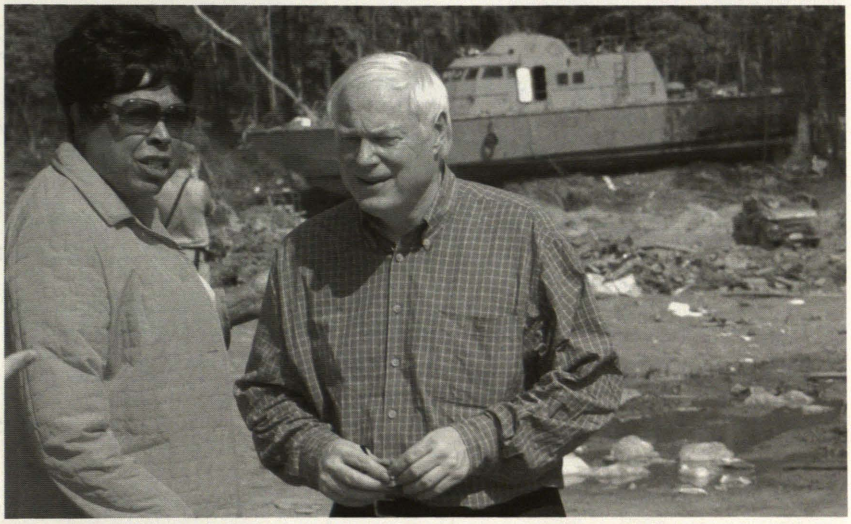
ally be made is still unclear.

Last year, Association of Southeast Asian Nations officials were quite critical of major powers–namely Japan and the U.S.–who did not send their top representatives to the ASEAN summit. What do you make of ASEAN's current status and evolving role in the region?

ASEAN is one of the more interesting international regional arrangements that have emerged in the last several decades, and I think it could play a greater role in the future. Its influence will coincide with a new power arrangement in East Asia—including China and possibly Russia—which might start to displace or complement ASEAN's role to some degree. We don't yet know what the exact effect will be. Whether the United States will have a place at that table is also somewhat unclear. ASEAN hasn't been entirely successful in dealing with the Myanmar situation, for example, but it certainly hasn't hurt it, either. And it has the potential to play a quite constructive role in that kind of issue. It has also played a very constructive role in trade issues and certain geopolitical problems, such as terrorism.

Japan continues to push for a permanent seat on the UN Security Council, engendering opposition from many of its Asian neighbors, especially China. How do you think this will play out, particularly in light of President Bush's close relationship with Prime Minister Koizumi?

It is the United States Government's position to support Japan in having a role on the Security Council. What's interesting to me is that Japan is the only country that we've given support to. When people look at Security Council reform, there are four or five other countries that are making claims, and I would hope that the United States would come to play a leading role with regard to them, as well. The most obvious is India, but the Security Council could also include countries like Germany, Brazil, and possibly an African country—or perhaps a rotating African seat. Nigeria and South Africa, for example, are not immensely large countries, but they are quite important in their regional setting and therefore deserve consideration.



***After the Storm**: Congressman Leach and Congresswoman Diane Watson of California view the tsunami-ravaged town of Khao Lak, Phang Nga province, in southern Thailand in January 2005. Leach has closely monitored the tsunami situation as Chairman of the East Asia and the Pacific Subcommittee of the House International Relations Committee. (Romeo Gacad/AFP/Getty Images)*

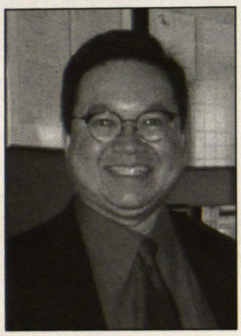
How will the competition between U.S. and Chinese energy firms play into our geopolitical relationship?

China is looking at world affairs in an almost exclusively commercial way. By doing so, it is enhancing its political stature. The United States, on the other hand, is looking at world affairs in a disproportionately political way, which has been weakening its economic as well as political stature. The issue of petroleum is a subset of that basic paradigm contrast. China is aggressively securing access to energy supplies because it feels quite vulnerable in that respect, but this doesn't mean that the United States isn't quite vulnerable as well. There are only two obvious ways to counter it: becoming less dependent on overseas sources of energy and stressing conservation. We're doing a little bit on the former, but virtually nothing on the latter. In terms of access, it is certainly important to have credible relations with countries that produce petroleum—on that score, the United States is moving steadily backwards. Essentially, China is decreasing its vulnerability while we are increasing ours. As we look to the future, we will need to reassess our current policies and start doing things differently.

China is looking at world affairs in an almost exclusively commercial way. By doing so, it is enhancing its geopolitical stature.

New Demands of American Intelligence

An Interview with Visiting Professor Minh A. Luong



Minh A. Luong is the Assistant Director of Yale's International Security Studies, where he administers the Grand Strategy Project, and is the Forrest Mars Sr. Visiting Professor in Ethics, Politics, and Economics. The founder of the Ivy Scholars Program to train high school students in international affairs, he has long been dedicated to promoting debate and oratory skills. His research interests include international security, corporate espionage, privacy issues, negotiation strategies, and leadership development. He sat down with The Politic on February 6.

It is now over four years since the September 11, 2001 attacks. What is your assessment of U.S. intelligence reforms thus far?

Actually, reforms in the U.S. intelligence community started in the 1990s, but it took the September 11th terror attacks to shock the American public and Congress into demanding substantive reform. The 9/11 Commission and WMD Commission reports recommended numerous reforms, yet many have not been implemented. Part of the reason for this is that in order to effect major reform, new leadership must be able to properly assess what needs to be changed and what needs to stay the same. That process takes time and if it is done without careful consideration, the solution could leave us in a far worse situation.

In this regard, Yale alumni are playing a major role in the intelligence reform process. Porter Goss '60, former Chairman of the House Intelligence Committee and CIA operations officer in the 1960s and early 70s, is now Director of the Central Intelligence Agency, and John Negroponte '60, former ambassador and Deputy National Security Advisor under President Reagan, is the first Director of National Intelligence. Both have been in their current positions for a short time: Goss since September 2004 and Negroponte since April 2005. They must be given sufficient time to do proper review and to implement reforms where needed. The intelligence community has made good progress in building bridges with the defense and law enforcement communities, and there is an unprecedented number of young Americans who are applying for positions throughout the intelligence community, so there is no lack of new, energetic talent. The intelligence community still needs technology updates to bring their aging networks up to standard, and there are numerous problems in getting computers throughout the federal and state government system to communicate with each other. These technology bottlenecks slow down our ability to process and analyze time-sensitive information. Additionally, the CIA needs more case officers in the field to recruit human sources throughout the world, but it will take about ten years to rebuild the type of network of sources that we had during the Cold War.

Do you think that the President's justification for NSA surveillance of Americans without warrants is on sound constitutional footing? If not, should leeway be given for new intelligence demands in the post-9/11 world?

I am not trained as a constitutional law expert so I cannot comment authoritatively on the constitutional issue specifically, but despite Attorney General Alberto Gonzales's assertion that the surveillance was legal, a number of prominent Republican lawmakers have called into question the legitimacy of the surveillance program. Senator Arlen Specter (R-PA), Chairman of the Senate Judiciary Committee, has called the Administration's defense of the National Security Agency program "strained and unrealistic." Even the non-partisan Congressional Research Service issued several reports concluding that the surveillance program "does not seem to be as well-grounded" as the Administration contends and that the program "would appear to be inconsistent with the law."

Without a doubt, the government does have a legitimate need to be able to intercept communications of criminals and terrorists, but a mechanism to facilitate that already exists – it's called the Foreign Intelligence Surveillance Court, authorized by the Foreign Intelligence Surveillance Act of 1978. The FISA court is comprised of seven federal district court judges from different circuits

whose terms are staggered. This court, at least in theory, is supposed to ensure that these types of government surveillance programs are constitutional. In practice, the FISA court almost always sides with the government. In fact, since the FISA court's inception in 1979, the court had never rejected a government request until 2003 when it rejected 4 requests out of 1,727. It granted every one of the 1,758 requests in 2004. As to the question about leeway, the FISA court was created for these types of situations, so I am rather perplexed why the Administration chose to circumvent a legitimizing mechanism that sides with the government in nearly every instance.

During the Cold War, the CIA was often used as an instrument of foreign policy, such as funding Radio Free Europe in the Eastern Bloc. How is the Bush administration using intelligence agencies to accomplish its strategic goals in the Middle East?

The complex situation in the Middle East has warranted a multifaceted foreign policy approach, and the intelligence community is playing a significant role. Many of the intelligence programs underway are classified, but the ones which are known include media efforts to promote pro-Western messages throughout the region. Karen Hughes, one of President Bush's closest advisors, is heading a global effort to improve the world's opinion of the U.S., and she is the principal architect of the current strategy in the Middle East. The CIA has reopened or expanded stations in countries which were shut down or scaled back during the 1990s. The new Open Source Center, part of the Office of the Director of National Intelligence, which includes the Foreign Broadcast Information Service, translates media broadcasts and news sources around the globe and produces briefing documents for U.S. policymakers so they are informed about how the U.S. is viewed overseas. Sponsoring pro-U.S. radio stations is a strategy which goes back to the Cold War but that strategy has been expanded to include pro-U.S. magazines, websites, blogs, and convincing opinion leaders in the region to promote U.S. positions.

***Meet the Press**: President Bush speaks to reporters with CIA Director Porter Goss at the agency's headquarters in Langley, Virginia. Bush visited the CIA and met with Goss, a fellow Yale graduate, to participate in intelligence briefings. (Brendan Smialowski/AFP/Getty Images)*

Within Europe, there has been a great deal of controversy about CIA detention centers and international transport of detainees. What is your opinion of the allegations?

I think it is too soon to determine the scope of these allegations, so it is prudent to wait to cast judgment until the truth is known. Last week, a European Union investigation concluded that there was no substantive proof that these operations existed, although the chief investigator personally thought that there was some circumstantial evidence. If the allegations prove true and if torture occurred at these facilities, it would put the U.S. and any host country in a difficult position, as it would be impossible to press repressive countries on human rights violations if we were, in fact, engaging in torture ourselves.

As technological progress continues to enhance intelligence capabilities, is there a danger of relying too heavily on these methods, thus short-changing essential human operations?

The CIA needs more case officers in the field to recruit human sources throughout the world, but it will take about ten years to rebuild the type of network of sources that we had during the Cold War.

Yale alumni helped found the CIA, and, given Yale's orientation towards public service, it comes as no surprise that a good number of Yalies apply to serve their country every year.

Absolutely. When satellites became viable as an intelligence-gathering tool, there was a concerted effort to rely more on electronic intelligence and satellite imagery than human sources. It was, at the time, considered a safer and more politically acceptable way of gathering intelligence. At the same time, resources devoted to human sources were reduced and the network of sources that was developed since World War II was scaled back significantly due to revelations that the CIA engaged in covert operations in the 1950s, '60s, and '70s. The problem is that when the U.S. stopped investing in its human intelligence network, it lost its ability to have eyes and ears on the ground, and it will take years, if not decades, to rebuild our human source networks around the world.

This effort cannot even begin until we have experienced CIA case officers who can develop these sources and earn their trust. Many senior CIA officers have testified that it takes up to ten years to gain the experience and proficiency to be able to recruit an effective human source network. So while we are not starting from scratch, a new generation of CIA case officers will need up to a decade to regain what we lost in the 1980s and '90s. What we need overall, however, is to develop a balanced approach to gathering intelligence using both high-tech and human sources.

***Chamber of Secrets**: Director of National Intelligence John Negroponte walks in the hallways of the Threat Operations Center inside the National Security Agency. In this new post, Negroponte, former Ambassador to the UN and a 1960 Yale graduate, is now responsible for overseeing and coordinating the nation's intelligence agencies. (Paul J. Richards/AFP/Getty Images)*

Today, with so much intelligence scrutiny of potential terrorist groups, has the United States been able to stay focused on major nation-states, such as China?

For key countries, the answer is yes. Certainly keeping an eye on an emerging economic and military force such as the People's Republic of China has been a priority for the U.S. intelligence community. While the War on Terror has made the headlines, the intelligence community, particularly the CIA's Directorate of Intelligence, has continued to monitor the political, economic and social trends in countries such as the PRC. Where the intelligence community has had to compromise is covering countries and even regions that do not pose an immediate threat. The concern here is that the U.S. and its allies will be caught unprepared if and when a crisis breaks out in one of these areas.

After World War II, Yale was a hotbed of recruiting for intelligence work, but this pipeline went underground during the Vietnam era. Do you feel that Yale's relationship with intelligence agencies has improved in recent years?

Without a doubt the atmosphere here at Yale has been more welcoming over the past five years. In fact, several intelligence agencies have participated in the past few job fairs held in Payne Whitney Gym, and they are among the most popular with the students. During the Vietnam era, recruiters from the military and intelligence agencies were not welcomed and some students and faculty demonstrated against their presence on campus. Through the 1980s and '90s, more Yale students wanted to find out more about the CIA and other intelligence agencies and the intelligence community recruited on campus once again. Until the intelligence agencies started recruiting on campus consistently, the recruitment effort was quite discreet. The relatively small number of Yale faculty members who were friendly to the intelligence community helped recruit their best students for careers in intelligence, which kept the pipeline of top talent flowing.

After all, Yale alumni helped found the CIA—hence the blue and white colors of the CIA seal—and, given Yale's orientation towards public service, it comes as no surprise that a good number of Yalies apply to serve their country as intelligence officers every year. P

State vs. Private Ownership of Natural Resources

Why Do Privatization Experiences in Peru and Zambia Differ?

By Alexis Ringwald

Editor's Note: This article is reprinted from the Fall 2005 issue of The Politic. Through no fault of the author, sources were not properly attributed at that time. We sincerely regret this error. For a complete list of references, please see page 39.

From the colonial period to the present, the mining industry has been one of the most important and dynamic sectors of the Peruvian and Zambian economies. Particularly over the past century, political and economic considerations for the industry have formed the path of economic growth in these countries, shaping the debate over the development of strategic natural resources and exemplifying the relevance of the "resource curse."[1] Peru and Zambia are two countries where economic policy and performance have been heavily determined by the performance of the mining industry.

In each case, the country engaged in a decades-long debate over state vs. private ownership of mineral resources—the countries' main source of revenue generation, employment, and exports, as well as its balance of payments problems, fiscal deficit and external debt. The examples of tremendous wealth in the oil producing and exporting countries throughout the 1960s and 1970s affirmed the idea that primary product exports, like mining, could serve as a critical factor in a country's economic development. As a result, a wave of nationalizations occurred in the 1960s and 1970s as many developing countries, Peru and Zambia included, sought to regain control of the strategic sectors of their economy, and thereby attain financial independence and promote development. Faced with severe economic crises, caused in part by failed state ownership of natural resources, and in particular mineral resources, both countries recognized by the early 1990s that structural adjustment programs would need to be implemented to save their deteriorating mining industries and national economies.

The question regarding the ownership of natural resources can be understood by analyzing the influence of external pressures and internal interests on country leaders in Peru from 1990 to the present and Zambia from 1991 to the present. In the context of strong external pressure from international financial institutions (IFIs) to privatize and weak internal influences from politically powerless domestic interest groups, it appears that a similar desire to strengthen executive power on the part of both leaders helps explain why Peru privatized its mining operations and Zambia did not, despite campaign promises to the contrary. This analysis reveals that the paths of Peru and Zambia to privatization differ insofar as each democratically-elected leader pursued a privatization strategy that would most easily facilitate his dominance of the executive power given the existing external and internal pressures.

In the decade before the 1990 election, Peru had entered a "crisis in political representation" in which the nation's political parties increasingly failed to represent the country's various interest groups.[2] As a result of this changing relationship between politics and economics, the mining sector, labor, and the general electorate found themselves unable to influence former Peruvian president Fujimori's policies.

Fujimori thus began his administration in the "unique position of lacking a proper electoral party but having no single opposition figure or party confronting him."[3] He used this complete autonomy to enact a program that would stabilize the country and allow Peru to "reinsert" (*la reinserción*) itself back into the international economy. Because an executive enters into IMF agreements "unilaterally" without the approval of other veto players, like the legislature, "reform-minded executives often use the IMF's leverage to push through unpopular policies."[4] Hence, Fujimori, an "outsider" with no particularly strong obligations to the mining sector, labor, or the general electorate, instituted authoritarian rule and subscribed to the IMF path to privatization in order to bypass opposition and strengthen his autonomy to make "unilateral" decisions. Furthermore, with an international seal of approval like the IMF supporting him, Fujimori could gain validity as a capable politician and thereby establish his otherwise unknown and tenuous presence in Peruvian politics. Thus,

***Alexis Ringwald**, a 2005 graduate of Yale College, is pursuing a Master of Environmental Management from the Yale School of Forestry and Environmental Studies.*

the path to privatization was chosen by a semi-authoritarian political leader who determined that endorsing IFI neoliberal reform policies would offer him the greatest opportunity to secure his dominance of executive power.

The popularly elected President Chiluba of Zambia also found himself in the somewhat ironic position of being able to impose authoritarian-like rule within Zambia's new but imbalanced democracy. Chiluba's landslide victory in the 1991 election had established a political environment in which accountability and checks and balances of the executive had little value. With 84 percent of the total votes[5] (albeit from only 35 percent of total eligible voters in Zambia)[6] and 120 of 150 Parliament seats,[7] this overwhelming success in Zambia's first democratic election ironically furnished the Movement for Multiparty Democracy (MMD) with a strong majority power reminiscent of the previous autocratic rule under the United National Independence Party (UNIP). Thus, as a new political elite with autonomous "executive dominance," Chiluba's presidential style was not unlike the one-party rule characteristic of Zambia's earlier authoritarian regimes.

Strong external pressure and weak domestic opposition explains how the president was able to enact privatization policies at a pace paralleling his domination of the policy-making process.

In addition to the MMD's dominance in the government, strong external pressure and weak domestic opposition further explains how the president was able to enact privatization policies at a pace that paralleled his strategy to dominate the policy-making process. Despite progress towards political and economic liberalization, domestic interest groups found themselves unable to act as a political force to hold Chiluba accountable to their demands for solutions to Zambia's economic woes. In the absence of any credible threats to MMD's power, Chiluba's willingness to commit to his campaign promises, much less domestic group interests, became uncertain. As a result, Chiluba chose a strategy that both allowed him to maximize his gains financially and fortify his dominance of the executive power. By half-heartedly endorsing IFI neoliberal policies while delaying privatization, Chiluba, like Fujimori, was able to maintain a steady stream of aid and support for his new government. At the same time, he could profit financially from ZCCM state patronage and the domestic backing from insider elites, additional benefits that were unavailable to Chiluba's "outsider" and populist Peruvian counterpart who personally "did not stand to benefit financially from reforms."[8]

Thus, in the context of strong external pressure to privatize and limited internal opposition from domestic interest groups, a situation not uncommon in many developing countries, leaders of nations may be faced with the following two main options concerning a country's strategic natural resources: either a full endorsement of IFI policies for privatization, or in the presence of established patronage channels and insider support, a delay of endorsement in order to maximize potential benefits to political elites. Hence, this analysis recognizes the role played by decision-makers within the state apparatus in choosing between alternative policies in pursuit of their underlying objectives. This range of options is limited, however, and is shaped by a variety of factors including economic conditions and the legacies of patronage and neopatrimonialism from previous administrations. External pressure and interests from IFIs and other international forces contribute as well to the variety of options available to a political leader. Other actors such as mining companies, labor and the general populace also have independent objectives and strategies, but their inability to directly influence the decision-making process only enhances the autonomy that political leaders have in selecting from the range of viable options, including the decision to privatize. As a result, the executive is able to pursue a strategy that facilitates dominance of the executive power.

An important question that remains to be answered is whether privatization offers an escape from the "resource curse." Countless studies document a correlation between resource abundance and negative impacts on economic performance.

Interestingly enough, much of the "resource curse" literature derives its empirical data from the same time period, mainly the late 1960s to the 1990s, during which state ownership over the exploration and production of mineral reserves is an attribute common to most resource-rich states, including Peru and Zambia.[9] Consequently, it may be that the ownership of mineral resources is a significant variable in the measure of country performance. If so, then part of the resource curse may be due to state ownership, and "privatization could offer a simple solution."[10]

A cursory comparison of the economic growth indicators in Peru post-1990 and Zambia post-1991 may offer an early test of this hypothesis. After a decade of privatizing, Peru's total revenues from privatization had reached $9.23 billion by 2000, an amount equivalent to 17 percent of the country's annual GDP.[11] The mining sector was by far the largest contributor to this investment, representing over $4.9 billion of the total.[12] The Peruvian economy, meanwhile, rapidly rejuvenated under privatization with GDP growth rates increasing from –12 percent in 1989 before Fujimori's election to +9 percent in 1995, while copper output grew 46 percent between 1992 and 2000.[13] With the Peruvian Ministry of Energy and Mines projecting that future foreign investments in the mining sector alone will total approximately $9 billion between 2001-2009, it appears that privatization of the mining industry will contribute significantly to Peru's economic development.[14]

In Zambia, meanwhile, high inflation, massive external debts, and a decline in real GDP per capita since 1991 resulted in the deterioration of Zambia's economy. Moreover, since the democratic election, Zambia dropped about thirty places to 130 out of 173 countries in the UNDP's 1993 Human Development Index.[15] According to many, the decline in the quality of life was caused to a great extent by a "poorly implemented structural adjustment program [that] imposed unprecedented hardships on the people".[16] Whereas before the 1991 election many believed that Zambia and its copper industry had nowhere to go but up, the MMD's first eight years in office demonstrated otherwise when Zambia experienced a further -42 percent drop in copper production.[17] The losses incurred from "government dithering" impacted the viability of both ZCCM and the Zambian economy in terms of lost output, reduced investment, higher national debt due to increased external borrowing, and an inability to return to a sustainable growth path.[18] In 2000, the MMD government "accepted the inevitable,"[19] and finally agreed to sell ZCCM to Anglo-American. The "nominal price" received "represented a token payment"[20] that covered only a fraction of the company's total debt.[21] There is no denying the fact, therefore, that "the failure of the MMD government to quickly resolve the problems of ZCCM profoundly damaged the Zambian economy."[22]

This cursory assessment of the economic growth indicators in relation to the mining sector suggests that privatization of the extractive industries did indeed contribute to substantial economic growth in Peru, whereas failure to privatize in Zambia may have resulted in its lack of growth over the past decade. This does not mean, however, that privatization is the best solu-

***Perpetual Unrest**: Zambians chant in support of the ruling Movement for Multiparty Democracy before a decision is handed down regarding fraud in the 2001 elections. The MMD was responsible for resource privatization and a collapsing economy in the mid-1990s. (Mackson Wasamunu/AFP/Getty Images)*

We are forced to face the disturbing implication that the political practices associated with authoritarian rule may prevail within the formal structures of democracy and a market economy.

Political and economic considerations for the mining industry have shaped the debate over the development of strategic natural resources and exemplifying the relevance of the "resource curse."

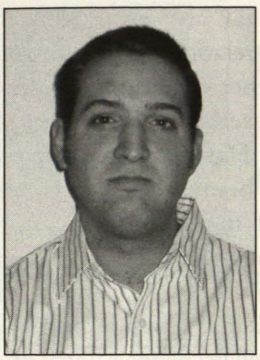
tion today for Zambia, nor does this conclusion intend to suggest that privatization in Peru has been a complete success, as there are numerous other factors (e.g. social, environmental costs) to consider. What this analysis does show, however, is that mining can be good for development, and privatization may be a means to achieving that goal.

In an age of rapid global growth and increasing resources consumption, the ownership of natural resources question can play an important role in determining the success of a resource-dependent nation. The question then that remains to be answered is why interest groups in the late 1980s and early 1990s were so weak as to allow the country leader to pursue the privatization strategy that most facilitates dominance of the executive power, not improvement of the national economy. After the 1990 election in Peru, business and mining interests found it difficult to form a unified coalition following the defeat of their original candidate, Mario Vargas Llosa, and the successful election of an "outsider" with few ties or obligations to established elites. Propitiously for these groups, however, Fujimori endorsed policies for neoliberal economic reform. In Zambia, meanwhile, the established mining elites from ZCCM conveniently found an immediate ally in Chiluba who sought to amass political power and wealth as a dominating executive. In both countries, however, despite the apparent alignment with business and mining interests, the new presidents assumed office with a determination to rule independently of outside influence, including that of the mining industry.

In both Peru and Zambia the weakening of domestic political voices like labor and the electorate was a factor of the ongoing process of political liberalization, which had facilitated the proliferation of NGOs and numerous interest groups, and thereby "reduced the influence of these associations"—a phenomenon known as the "pluralist paradox."[23] In Peru, Fujimori directly codified this "paradox" in a series of laws designed to democratize any popular movements by labor and other interest groups, and thereby undermine their ability to engage in collective action. In Zambia, meanwhile, the advent of democracy with concomitant freedoms of speech and protest indirectly, yet "paradoxically" weakened the membership numbers of traditional opposition forces like business and labor when individuals splintered off to join other groups, thereby making it "increasingly hard to be seen and heard in public fora."[24] Thus, weakened by recent economic crises, internal division, and lack of unity, labor and the electorate in both countries found themselves disregarded in the political decision-making process.

This analysis suggests that the absence of accountability and an effective system of checks and balances allowed each leader, pressured by external forces and unrestrained by domestic interests, to pursue a path to privatization or not as befitted his strategy to strengthen executive power. If this is true, then we are forced to face the disturbing implication that the political practices associated with authoritarian rule, such as centralization of power in the presidential office, weak checks from domestic interests, and extensive use of state patronage for political gain, may prevail within the formal structures of democracy and a market economy.[25]

In order to ensure that political leaders elect policies in the best interest of the citizens and not predominantly the executive, substantial policy pressure, both externally and domestically, will need to be imposed on Peru, Zambia and other imbalanced resource-dependent states for improved governance, a fortified system of checks and balances, and empowered civil society representation with a more direct influence on the decision-making process. These changes will be essential not only in creating better functioning democracies, but also in potentially ensuring that the ownership of a country's prime national asset, its natural resources, is not an arbitrary outcome that depends on political leadership.



Hamas at the Crossroads

Will Power Bring Reform?

By Zvika Krieger

It came as no surprise to observers of the Middle East that Hamas secured a solid victory in the Palestinian parliamentary elections on January 24, 2006, the first relatively free elections in which the Palestinian people have participated. For years, resentment has been festering among the Palestinians against the Palestinian Authority, the quasi-governmental body established by the Oslo Accords and run by the authoritarian Fatah party. Under Yasser Arafat, the PA became rife with corruption, terrorism, and ineptitude; under his successor, Mahmoud Abbas, the PA has continued its downward spiral. While Fatah has tried for the past decade to redirect blame for the crime, poverty, and statelessness that now define the Palestinian territories, this recent election is a clear statement from the Palestinian people that they know who is at fault, and they have had enough.

Enter Hamas, the Palestinians' only alternative. Hamas's victory over Fatah cannot be explained by their religious zealousness alone. Their reputation for honesty and charity has garnered widespread support and trust. This vote was a referendum on Fatah, and even secular-minded Palestinians turned to Hamas for some hope for change.

The only problem, of course, is that these erstwhile reformers have been the perpetrators of barbarous acts of terrorism, seek the destruction of the state of Israel, and hope to implement Islamic law in the Palestinian territories. The U.S. has been unwavering in its position toward Hamas, refusing to engage any Palestinian government that includes Hamas until the group disarms, rejects terror, and accepts the existence of Israel. British Prime Minister Tony Blair has taken a similar line, with the rest of Europe duly following behind him.

A new discourse, however, has arisen in recent months to counter this attitude of rejection. The theory goes that if Hamas enters the Palestinian government and is forced to engage with the real-world issues required to govern, they will be compelled to moderate. On the other hand, closing the political arena to Hamas will only make them more radical. The argument then follows that Hamas should be embraced as legitimate political actors. Sometimes referred to as the "pot-hole theory," (as in, Hamas will be too busy fixing pot holes in Palestinian streets to worry about destroying Israel), its recent wave of supporters include former President Jimmy Carter and Egyptian reformist Said Eddin Ibrahim.

While it is impossible to predict how Hamas will evolve as a result of its participation in the Palestinian government, we can look to examples of similar Islamist groups in the Middle East that have participated in relatively democratic systems. Perhaps the most instructive examples would be those right on the Palestinians' borders: the Islamic Action Front Party (IAFP) in Jordan and Hizballah in Lebanon.

The Jordanian experience may be the best proof for the "pot-hole theory." The IAFP, which is the Jordanian Muslim Brotherhood's political party, has participated in the democratic system since the country had its first free elections in 1989. In that first election, the total Islamist bloc attained 32 out of 80 seats. It has maintained its position as a formidable opposition party in subsequent elections. Since their entrance into the political system, Jordanian Islamists have continued to sign new drafts of the National Charter, which give primacy to democracy and liberal values over any other interests, including religion.

The experience of Hizballah, on the other hand, presents an example of how Islamists can exploit elections and governmental positions to preserve their own militancy and to resist efforts at moderation. Since their victory in Lebanon's first post-war parliamentary election, in 1992, Hizballah has remained a fixture in Lebanese politics. But contrary to the "pot-hole theory," the group has not become more moderate. It continues to describe itself as a "national resistance" movement; it is still heavily armed; and many consider it to be the most effective military force in Lebanon. It has flouted UN calls to disarm, continues to spew vitriol against the U.S. and Israel, and serves as Iran and Syria's middleman to fund terrorist groups in Israel.

So which path will Hamas choose? There may be rea-

*A senior in Silliman College, **Zvika Krieger** is a political science major.*

Marginalized to Majority? *Supporters of the militant Islamic group Hamas celebrate their Palestinian election victory in January 2006, in Ramallah in the West Bank. Palestinian Prime Minister Ahmed Qureia has announced he will step down, with Hamas looking set for a majority in parliamentary elections over his Fatah Party. (Uriel Sinai)*

Does this mean that Hamas will become the next Hizballah – a militant terrorist group that serves in the government?

sons to believe that Hamas will follow the Jordanian example. For one, the Jordanian Muslim Brotherhood and the Palestinian Muslim Brotherhood – Hamas's parent organization – actually developed in tandem from 1948 to 1967, when Jordan controlled the West Bank. During these formative years, they were actually the same organization, with no differentiation between the east and west sides of the Jordan River. It is only after the Israeli victory in 1967 and their subsequent occupation of the West Bank that the two groups became differentiated. The leadership of the two groups maintains intimate links – and hopefully influence.

The reasons to be hopeful that Hamas will take this peaceful path, however, end here. A crucial distinction between the two groups is that the Jordanian Muslim Brotherhood, though certainly Islamist, was never significantly militant. Thus, their conversion was from an apolitical religious organization to a legitimate political party. Hamas, on the other hand, must transform from a militant religious group to a democratic party – a more difficult transition. This is in addition to the obvious issue that the two groups developed in vastly different social, political, and economic circumstances.

Furthermore, my interviews this past summer in Jordan with IAFP leaders seemed to indicate that, rather than the IAFP serving as a "positive role model" for Hamas, the relationship might actually work the other way around – that it is Hamas that exerts influence over the IAFP, and that Hamas's increasing extremism has been leading to the radicalization of the IAFP.

Does this mean that Hamas will become the next Hizballah – a militant terrorist group that serves in the government? Not necessarily. Hizballah channels much of its funding to Islamic Jihad, a Palestinian terrorist group that does not have nearly the level of support garnered by Hamas. Furthermore, the urgency of the Palestinian issue – their lack of a state – means that the Palestinian people will have less patience for a militant group that is high on violence but low on results. While Hamas may help in the short-term by stamping out corruption, lowering crime, and easing poverty, the litmus test for Palestinians is their government's ability to achieve an independent state. If Hamas's brand of terrorism does not bring the Palestinians any closer to that goal – and there is a growing consensus among them that this tactic is doing more harm than good – then it is only a matter of time before Hamas will be relegated to the same trash heap as Fatah.

There is one more source of hope that Hamas can learn these lessons and become more moderate: the group's own history. For most of the Palestinian Muslim Brotherhood's history, they were an apolitical, pacifist religious group. The group only turned to violence in 1989, when the outbreak of the first *intifadah* made violent resistance against Israel a valuable tool to attract members. This history seems to indicate that, like most popular groups, Hamas will choose their tactics based on what will garner them the most popular support. In other words, Hamas is pragmatic rather than stubbornly ideological. Just as popular opinion was strong enough to convince Hamas to turn to violence, only a massive shift in Palestinian popular opinion against violence will be sufficient to convince the group to return to its nonviolent roots.

Getting Creative with Creationism

On the Origin of Intelligent Design

By Sam Yellen

In October 2004, the Dover, Pennsylvania, school board adopted a resolution to introduce the teaching of Intelligent Design to ninth grade biology students. The declaration stated the following: "Students will be made aware of gaps/problems in Darwin's theory and of other theories of evolution including, but not limited to, intelligent design. Note: Origins of Life is not taught." The board misunderstood Intelligent Design to be a scientific theory on par with evolution and mistakenly believed that it is possible to teach Intelligent Design without explaining the origins of life.

In *Kitzmiller v. Dover Area School District*, a concerned parent, Tammy Kitzmiller, sued the Dover school board for violating the Establishment clause of the Constitution's First Amendment, that "Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof." In order to decide whether the First Amendment was being respected, Judge John E. Jones III of the U.S. District Court carefully applied two separate judicial tests. The first was referred to as the "endorsement test" by which the court determined whether the actions of the school board would appear to an outside observer to be an endorsement of a certain religion. The second was the Lemon test, named for *Lemon v. Kurtzman*, 403 U.S. 602 (1971), which created a three-pronged standard that determines whether or not the school board action would be improper if (1) it does not have a secular purpose; (2) its principal or primary effect advances or inhibits religion; or (3) it creates an excessive entanglement of the government with religion.

In the decision, Judge Jones carefully chronicled how Intelligent Design was not a true scientific theory but in fact a carefully crafted Trojan Horse to place religion into classrooms. Judge Jones brought this to light by both exploring the validity of Intelligent Design as a scientific theory and by examining the public histories of those on the Dover School Board who proposed the curriculum change introducing Intelligent Design into the classroom. This scheme was evidenced in part by the fact that following the Supreme Court's decision on *Edwards v. Arkansas* in 1987, which ruled against the teaching of creationism, or creation science, the proponents of creationism systematically edited their school textbooks, simply replacing the word creation with "intelligent design" and, in the larger scheme, changing their message from identifying a creator to merely trying to argue that as facts present themselves, these facts necessitate the existence of a creator.

Intelligent Design could not so quickly shed its past as creation science. In great detail, Judge Jones lists the many links that tie Intelligent Design to creationism. One of the most compelling being the way that the authors of the different edition of the book *Of Pandas and People* underwent several revisions after the *Edwards* decision resulting in according to *Kitzmiller* only, "a change of words" and not a "change of content." But the decision did not stop there, the *Kitzmiller* decision meticulously observed the details, even noting that the book *Of Pandas and People* was listed under "Creation Science" in the textbook catalog from which it was ordered.

In addition to its religiously motivated history, it was also rigorously determined that the concept of Intelligent Design does not constitute a proper scientific theory. An expert witness testified to the fact that throughout the history of modern science, natural answers have been sought to questions, which have generally excluded the supernatural causation required by Intelligent Design. In fact, it was shown that most of the proponents of intelligent design held religious beliefs such that they felt that science as a whole should be changed in order to accommodate the role of the supernatural. Intelligent Design has not been discussed in any peer reviewed science journals, nor does the National Academy of Sciences hold it to be science.

In addition to the violation of the Establishment

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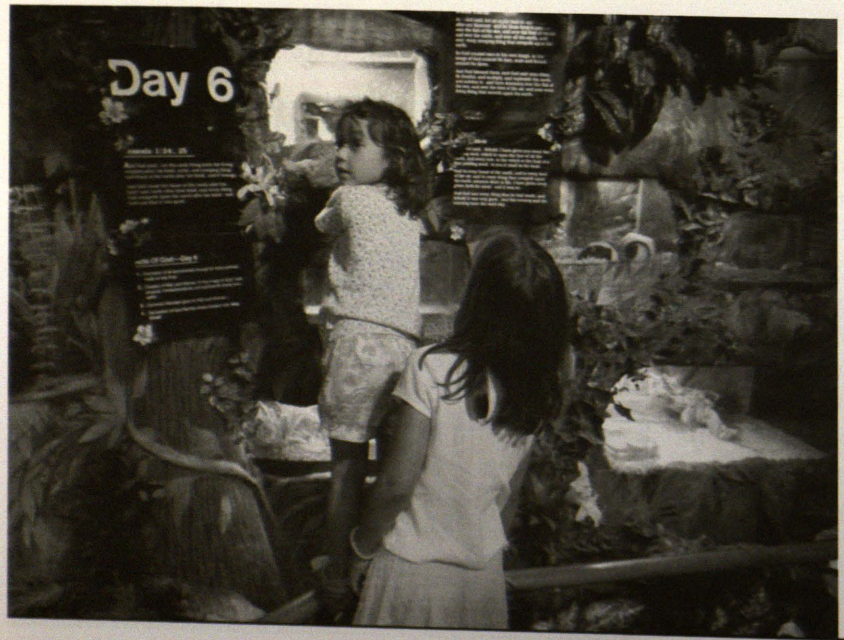
***Darwin in Dover**: A cross is displayed outside a church in Dover, Penn. The Dover school board voted in October 2004 to require biology teachers to read a statement in class saying that Charles Darwin's theory of evolution is not fact and that alternative theories exist, including "intelligent design," which supports that life is so complex that it can come only from a higher creator. A federal judge has since ruled the decision unconstitutional. (Stan Honda/AFP/Getty Images)*

The proponents of Intelligent Design are guilty of weakening American science education at a time when the United States can least afford it.

***And on the Sixth Day**: A school group checks out a display at the Museum of Creation and Earth History in Santee, California, which contains exhibits that depict creationism and dispute evolution. Intelligent design is seen by some as an attempt to fuse these opposing views. (Sandy Huffaker/Getty Images)*

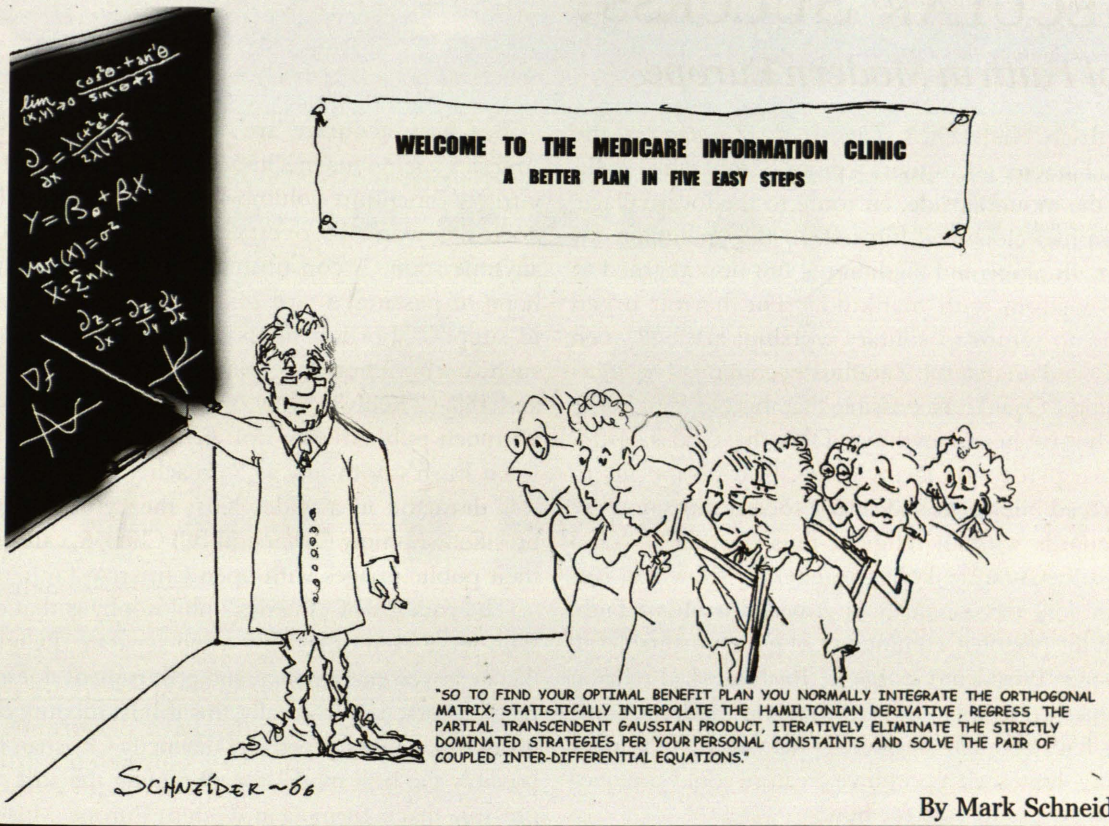


Clause of the First Amendment of the Bill of Rights and American civil liberties, the proponents of Intelligent Design are also guilty of weakening American science education at a time when the United States can least afford it. By allowing a clearly non-science view the school board created a false dualism between Darwin's Theory of Evolution and Intelligent Design.

While it is true that Darwin's original theory has some gaps in it and has been refined over the years through the hard work of many different scientists, Judge Jones was careful to point out in his decision that, had the true intent been to explore scientific alternatives to Darwinism, they would have included more theories than just "intelligent design" in their textbooks.

At a time when Americans students are consistently under-performing in the sciences when compared worldwide to their peers, the United States cannot afford to continue to sabotage the science educations of its children if it wishes to maintain its place in an increasingly global economy.

While this case may serve as the end of the term "Intelligent Design" being placed in the science classroom, if cases such as *Edwards v. Arkansas* serve as any indicator for the future, proponents of religion and creationism in the classroom will undoubtedly pursue other means to achieve their means. Already, we are seeing this next iteration of creationism. Its proponents have shifted from advocating its teaching in the Biology classroom, where it cannot stand the rigorous tests of science, to advocating the discussion of the controversy in classes outside science. Allowing the discussion to take place outside of the biology classroom allows the discussants to neglect the fact that the creationism or intelligent design is anything but comparable to Darwin's theory and to thus perpetuate the false duality that Creationism and Darwinism are equivalent. Time will tell exactly what tactics the proponents of religion in the classroom will choose next.



By Mark Schneider DC '08

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A Secular Success?

Tests of Faith in Modern Europe

In Friedrich Nietzsche's *Thus Spake Zarathustra,* the namesake character encounters a pious hermit while walking down the mountainside, en route to the local village. Zarathustra had cloistered himself on this mountain for many years, thinking and meditating, but now yearned to share his wisdom with mankind. The hermit urged Zarathustra to return to solitary worship; after all, men are ignorant and ungrateful. Zarathustra continued his journey, asserting: "Could it be possible that this old saint in the forest has not yet heard anything of this, that God is dead?"

If popular perception is any guide, Europe appears to have embraced Nietzsche's idea that society must now set moral standards without religion, thus opening a "God gap" across the Atlantic. Polls do generally show that Europeans are less passionate than Americans about faith, whether on the personal, community, or governmental level. And ever since President George W. Bush invoked religion no fewer than ten times in his first inaugural address, some Europeans have certainly wondered—as would Nietzsche's Zarathustra—how such a primitive creature could convince fifty million people to vote for him.

Is God dead in Europe? At the very least, Europeans don't seem to like how Americans practice religion, and vice versa. Given the human tendency to dramatize one's differences with an "other" when the other is not well-understood, it's quite possible that simple ignorance—as much as any other factor—is driving absurd perceptions of Europe as a soulless monolith and of America as a massive Billy Sunday congregation.

Germany presents an interesting challenge to the binary transatlantic view. The German government, for instance, works very closely with religiously-based organizations, particularly in the health and social welfare sectors. Furthermore, most German public schools offer religious education. This degree of cooperation between church and state would be unthinkable—indeed, unconstitutional—in America. Clearly, many Germans consider religion to be a basic element of moral education and guidance in their society, just as many Americans do.

In my view, the pivotal question deals more with expressions of faith than religion *per se.* Even though Germans support religion in the public arena, they—along with most other Europeans—seem to consider personal faith as an essentially private matter. As Johannes Zachhuber, Professor of Theology at the Humboldt University in Berlin, puts it, "Religion in Germany is reduced to a practical, ethical aspect of life." It is little wonder, then, that America's proselytizing megachurches and televangelists would offend the sensibilities of people in Europe.

But how accurate are these impressions? Though America's religious machines may be a constant source of intrigue for culture columnists at the *New York Times*, their doctrines won't be overtaking the political equilibrium anytime soon. A constitutional gay marriage ban had no hope of passing; a vast majority of Americans continue to support abortion rights; and debates on public faith, such as school prayer, display of the Ten Commandments, and Bill O'Reilly's "War on Christmas" have drummed up much publicity but not any fruitful policy initiatives. Even Bush's notoriety as a preacher *cum* president seems less dramatic in a wider lens; the last two Democratic presidents, Jimmy Carter and Bill Clinton, carefully crafted their public images with open Christian faith, as well.

The paradox of America's philosophy is that church and state serve each other best when separate: Religion doesn't dictate government policy, and government doesn't impinge religious practice. Ironically, this robust mixture of faith and liberalism, while steeped in a distinctly Christian tradition, is possibly the best model for alleviating the sort of religious pressure that is forming in Western Europe. Muslim integration will be the foremost social issue for France, Germany, and Britain for decades to come, and though there is room for institutional religion in these countries, their thresholds for personal expression are simply too low.

In France, there is no such thing as "French Christian," or "French Protestant"—only "French." As millions of Muslims in France have learned, however, becoming "French" is a chimerical ambition if you don't meet the unspoken criteria. Accordingly, fundamentalist movements, which exploit these identity crises, have begun to gain sway. And this is a real danger. Britain is among the most religiously liberal of European nations, yet many of its Muslims are still marginalized from British society—a fact that led to the homegrown terrorist acts of July 7, 2005.

In a recent *New Republic* article, an American Muslim touched on the counterintuitive success of pluralism in the U.S.: "When I go out to Bush Country, it is true that, for some people, the way I pray is peculiar. But they don't think I'm hallucinating when I say, 'It's prayer time.'" If unchecked, of course, public faith can engender discrimination or spill over into policymaking. But on balance, this is a manageable risk for the religious flexibility that benefits us in so many ways.

Europe's postmodern, liberal reputation falls short on this score. A truly liberal society, it seems, would be more accommodating of peaceful expressions of faith in its public square.

Josh Boehm, Editor-in-Chief

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